Constitution Ancillaries

Table of Contents

CA 6 19.3	Beautification of highways; regulation of outdoor advertising and junkyards	3
CA 6 23	Long Range Highway Fund; revenues to be paid into Fund; bonds for construction, maintenance, improvement and extension of state highways; limitations; withdrawal of funds for state and parish highways and roads; continuation of certain taxes	4
CA 6 23.1	Financing of construction, maintenance, improvement and extension of highways	7
CA 6 29	Repealed by Acts 2011, No. 248, §1.	10
CA 6 29.1	29.1 to 29.4 Repealed by Acts 1983, No. 439, 2.	11
CA 7 51	Justice of the peace courts; city courts	12
CA 7 85	Stenographers; minute clerks; salaries; deputy sheriffs; judges' vacations and absences	13
CA 7 91	First city court; jurisdiction; pleadings; authority; procedure; costs; appeals; small claims	14
CA 7 96	Establishment; jurisdiction; appeals; procedure; judges	16
CA 7 97	Time of election of judges and other parish officers	18
CA 10 1	Taxing power; specific taxes	19
CA 10A 4	Annual payment to Louisiana State University and Agricultural and Mechanical College	21
CA 14 3(D)	Acquisition and financing of sewerage improvements	22
CA 14 15.1	Fire and police civil service; municipalities of 13,000 to 250,000	27
CA 14 24	Repealed by Acts 2011, No. 248, §1	46
CA 14 24.2	Repealed by Acts 2011, No. 248, §1	47
CA 14 24.3	Repealed by Acts 2011, No. 248, §1	48
CA 14 24.4	Repealed by Acts 2011, No. 248, §1	49
CA 14 24.5	Repealed by Acts 2011, No. 248, §1	50
CA 14 24.6	Repealed by Acts 2011, No. 248, §1	51
CA 14 24.7	Repealed by Acts 2011, No. 248, §1	52
CA 14 24.8	Repealed by Acts 2011, No. 248, §1	53
CA 14 24.9	Repealed by Acts 2011, No. 248, §1	54
CA 14 24.10	New Orleans; board of liquidation of city debt; membership and powers	55
CA 14 24.11	Repealed by Acts 2011, No. 248, §1	56
CA 14 24.12	Repealed by Acts 2011, No. 248, §1	57
CA 14 24.13	Repealed by Acts 2011, No. 248, §1	58
CA 14 24.14	Repealed by Acts 2011, No. 248, §1	59
CA 14 24.15	Repealed by Acts 2011, No. 248, §1	60
CA 14 24.16	Repealed by Acts 2011, No. 248, §1	61
CA 14 24.17	Repealed by Acts 2011, No. 248, §1	62
CA 14 24.18	Repealed by Acts 2011, No. 248, §1	63

CA 14 24.19	Repealed by Acts 2011, No. 248, §1	64
CA 14 24.20	Repealed by Acts 2011, No. 248, §1	65
CA 14 24.21	Repealed by Acts 2011, No. 248, §1	66
CA 14 24.22	Repealed by Acts 2011, No. 248, §1	67
CA 14 24.23	Repealed by Acts 2011, No. 248, §1	68
CA 14 25	New Orleans; special tax for fire and police departments	69
CA 14 25.1	New Orleans; special tax for general municipal purposes	70
CA 14 31.3	New Orleans; railroad passenger stations	71
CA 14 31.7	Repealed by Acts 2011, No. 248, §1	76
CA 14 32	Caddo Parish; sale of jail site; proceeds	77
CA 14 33	Industrial plant erection; agricultural industrial boards	78
CA 14 38	Jefferson Parish; public improvement districts	80
CA 14 38.1	St. Charles	85
CA 14 39	Repealed by Acts 1997, No. 1095, 3 (See R.S. 33:4699.1).	91
CA 14 39.1	Calcasieu parish; community center and playground districts; bond issue; secretary-treasurer's performance bond	92
CA 14 44	Repealed by Acts 1997, No. 1095, 3 (See R.S. 33:4699.1).	93
CA 14 44.1	Repealed by Acts 1997, No. 1095, 3 (See R.S. 33:4699.1).	94
CA 14 45	Repealed by Acts 1998, 1st Ex.	95
CA 14 47	Louisiana Stadium and Exposition District	96
CA 16 6	Repealed by Acts 2011, No. 248, §1	103
CA 19 19	Immovable property; recordation of mortgages, privileges, etc.; prescription of taxes and licenses; privileges on movable property	104
CA 19 20	Repealed by Acts 1984, No. 954, 2.	105

CA 6 19.3

Beautification of highways; regulation of outdoor advertising and junkyards

ARTICLE VI. ADMINISTRATIVE OFFICERS AND BOARDS

§19.3. Beautification of highways; regulation of outdoor advertising and junkyards

Section 19.3. It is a public purpose and in the public interest to expend public funds in connection with the construction, reconstruction or improvement of state highways for the acquisition of the full ownership or any lesser interest in property in order to protect the public investment, promote the safety and recreational value of public travel, and restore, preserve and enhance the scenic beauty of or points of interest in areas traversed by state highways.

To accomplish these purposes and to insure maximum participation of federal-aid highway funds made available in accordance with the provisions of Title 23 of the United States Code, the Legislature is authorized to vest in the Department of Highways the full police power of the State, through zoning authority or otherwise, and such additional powers of expropriation as may be considered necessary.

Specifically, the Legislature shall provide for controlling the erection and maintenance of outdoor advertising signs, displays and devices, and the establishment, use and maintenance of junkyards in areas adjacent to the interstate and primary systems; the acquisition of such advertising devices and junkyards when reasonably necessary; the acquisition and operation of roadside parks, rest and recreational areas and sanitary and other facilities for the safety and accommodation of the traveling public; and for the acquisition of roadside development areas, or scenic strips, reasonably necessary or useful for the restoration, preservation and enhancement of scenic beauty or points of interest.

Such zoning authority as may be authorized hereunder shall, except to the extent necessary to insure receipt of maximum federal-aid funds, be consistent with the lawful exercise of zoning authority vested in the municipalities and parishes of this State.

Any legislation adopted at the regular session of the Legistature in 1966 on the subject of this amendement shall be validated and ratified by the adoption of this amendment.

Added by Acts 1966, No. 552, adopted Nov. 8, 1966.

CA 6 23

Long Range Highway Fund; revenues to be paid into Fund; bonds for construction, maintenance, improvement and extension of state highways; limitations; withdrawal of funds for state and parish highways and roads; continuation of certain taxes

§23. Long Range Highway Fund; revenues to be paid into Fund; bonds for construction, maintenance, improvement and extension of state highways; limitations; withdrawal of funds for state and parish highways and roads; continuation of certain taxes

Section 23. (1) Subject to dedication or other contractual allocations heretofore made by the Constitution there shall hereafter be paid into a special fund in the Treasury to be known as the Long Range Highway Fund, all revenues derived from the following sources:

(a) All taxes levied by or under the Authority of Article VI, Section 22, of the Constitution except the Kerosene tax;

(b) The tax levied by Article VI(A) of the Constitution;

(c) Use fuel tax;

(d) Taxes levied upon lubricating oil;

(e) Taxes for licenses on all motor vehicles and other vehicles on public highways;

(f) The amount of the proceeds of all royalties and bonuses including annual delay rentals and other income dedicated by Article IV, Section 2(c), of the Constitution to the Louisiana Department of Highways.

No pledge or dedication of revenues derived from any of the aforesaid sources shall hereafter be made except as provided in this Section.

(2) To provide funds for the construction, maintenance, improvement and extension of State highways and the necessary bridges, overpasses, underpasses and tunnels situated thereon, the Board of Highways for and on behalf of the State of Louisiana, by and with the consent of the State Advisory Board, may issue bonds of the State of Louisiana, the principal and interest of which, irrespective of the dates of issuance thereof, shall be payable, on a parity, primarily from the moneys in the Long Range Highway Fund. Such bonds shall be the general obligations of the State of Louisiana, for the payment of which the full faith and credit of the State shall be pledged. The payment of the principal and interest of said bonds shall be the first charge upon the moneys in the Long Range Highway Fund and the Treasurer of Louisiana shall in each fiscal year set aside for the payment of the principal and interest of all bonds issued under the authority of this Section, which may then be outstanding, the aggregate amount of the principal and interest due thereon in such fiscal year and the amount contracted to be set aside in said fiscal year in sinking funds or reserve funds for the payment of the principal of such bonds dues in subsequent fiscal years. Said bonds shall mature at such time or times as the Board of Highways shall determine within twenty-five (25) years from their date, and shall bear interest at a rate not exceeding four percent (4%) per annum, payable semi-annually, and shall be in such denominations and form as the Board of Highways shall determine, and shall be redeemable at such times and at such redemption premiums as shall be determined by the Board of Highways and set forth in said bonds. The principal and interest of said bonds shall be payable in lawful money of the United States of America at the office of

the Treasurer of the State of Louisiana, in the City of Baton Rouge, Louisiana, or at the State's fiscal agency in the City of New York, State of New York, at the option of the holder. Said bonds shall be sold to the highest bidder upon sealed proposals at public sale for not less than par and accrued interest, after advertisement published by the Board of Highways at least ten (10) days in advance of the date of sale in newspapers or financial journals published in the Cities of New Orleans, Louisiana, Chicago, Illinois, New York, New York, and such other places as the Board of Highways may determine, reserving to the Board of Highways the right to reject any and all bids, and the right to readvertise for new bids in the manner herein provided.

Said bonds shall be signed by the Governor, the Auditor and the Treasurer of the State of Louisiana, provided that the signatures of the Governor and Auditor on said bonds may be printed, lithographed or engraved thereon. Any coupons attached to said bonds shall bear the facsimile signature of the Treasurer of the State of Louisiana. Said bonds are hereby declared to have the qualities of negotiable instruments under the law of Louisiana, and shall not be invalid for any irregularity or defect in the proceedings for the issuance and sale thereof, and shall be incontestable in the hands of bona fide purchasers or holders thereof.

No proceedings or approvals with respect to such bonds or the issuance and sale thereof shall be necessary except such as are contemplated by this Section.

(3)(a) No bonds may be issued under the authority of this Section unless the moneys paid into the Long Range Highway Fund during the preceding fiscal year shall have been not less than twice the maximum payment required to be made in any fiscal year on account of the principal, interest, sinking fund or reserve fund requirements with respect to all bonds issued and outstanding under authority of this Section and the bonds then proposed to be issued, which facts shall be certified to the Board of Highways by the Treasurer of Louisiana and the determination of such facts so made by the Treasurer of Louisiana shall be conclusive.

(b) No more than Thirty Million Dollars ($30,000,000.00) in bonds shall be issued in any one fiscal year and no more than a total of Sixty Million Dollars ($60,000,000.00) in bonds shall be issued under the authority of this Section. This provision is hereby excepted from the contractual obligation to the holders of the bonds issued under authority of this Section and may be changed by constitutional amendment without violating the contractual arrangement with said bondholders.

(4) The Department of Highways shall be entitled to withdraw in each fiscal year all moneys remaining in the Long Range Highway Fund, after the Treasurer of Louisiana shall have first set aside the amounts required for the payment of the principal of and the interest upon outstanding bonds issued under authority of this Section, and shall be entitled to use such moneys for the construction, maintenance, improvement and extension of State highways and the necessary bridges, overpasses, underpasses and tunnels situated thereon, and for the construction of roads and bridges on the parish road system, now or hereafter existing, in the amount of Two Million Three Hundred Fifty-seven Thousand Dollars ($2,357,000.00) each fiscal year.

(5) The tax of four cents (4¢) per gallon on gasoline, benzine, naphtha and other motor fuels and the additional tax thereon of one cent (1¢) per gallon now levied under authority of Article VI, Section 22, of the Constitution, shall continue to be levied until all dedications of

the proceeds of said taxes heretofore made shall have expired, at which time said taxes shall be consolidated into a tax of five cents (5¢) per gallon on gasoline, benzine, naphtha and other motor fuels and said tax shall continue to be levied so long as any bonds issued under authority of this Section are outstanding and the proceeds of such tax shall be paid into the Long Range Highway Fund and applied as provided in this Section.

If science or invention should reduce the use and consumption of gasoline, benzine, naphtha or other motor fuels to such an extent that the tax on such commodities should not be sufficient to retire the bonds issued under the authority of this Section, including the interest due thereon, then the Legislature shall have the authority to levy a tax upon any commodity, substance, appliance or paraphernalia, or to impose a license upon the right to sell or make use of such commodity, substance, appliance or paraphernalia, which may be sold or used to generate or supply motor fuel or other power for transportation; to levy such tax or license, or both, or such other taxes as may be necessary to pay said bonds and the interest thereon, and this authority shall in no wise affect the tax levied under the authority of the Constitution and statutes of the State upon gasoline, benzine, naphtha or other motor fuel as defined by law, or be subject to any limitation imposed by the Constitution.

In like manner, the one cent (1¢) gasoline tax levied under Article VI(A), of the Constitution, the use fuel tax, the tax on lubricating oil, and taxes for licenses on all motor vehicles and other vehicles shall continue to be levied so long as any bonds issued under authority of this Section are outstanding and the proceeds of such taxes subject to prior dedication, as aforesaid, shall be paid into the Long Range Highway Fund and applied as provided in this Section.

(6) Except as otherwise provided in Section (3)(b) hereof, the provisions of this Section shall constitute a contract between the State of Louisiana and the holder or holders of any bonds or coupons issued under the authority hereof.

(Added by Acts 1955, No. 141, adopted Nov. 6, 1956.)

CA 6 23.1

Financing of construction, maintenance, improvement and extension of highways

§23.1. Financing of construction, maintenance, improvement and extension of highways

Section 23.1. (1)(a) To provide funds for the construction, maintenance, improvement and extension of State and Parish highways and the necessary bridges, overpasses, underpasses and tunnels situated thereon, the Board of Highways for and on behalf of the State of Louisiana, by and with the consent of the State Advisory Board, may issue bonds of the State of Louisiana, the principal and interest of which, irrespective of the dates of issuance thereof, shall be payable, on a parity with Sixty Million Dollars ($60,000,000.00) in bonds authorized, issued and outstanding in accordance with the provisions of Act No. 141 of the Regular Session of the Legislature of Louisiana, 1955, adopted as an amendment to the Constitution of Louisiana at an election held November 6, 1956, primarily from the moneys in the Long Range Highway Fund. Such bonds shall be the general obligations of the State of Louisiana, for the payment of which the full faith and credit of the State shall be pledged. The payment of the principal and interest of said bonds, together with the bonds authorized, issued and outstanding in accordance with the provisions of said Act No. 141 of the Regular Session of the Legislature, 1955, shall be the first charge upon the moneys in the Long Range Highway Fund and the Treasurer of Louisiana shall in each fiscal year set aside for the payment of the principal and interest of all bonds issued under the authority of this Section, which may then be outstanding, the aggregate amount of the principal and interest due thereon in such fiscal year and the amount contracted to be set aside in said fiscal year in sinking funds or reserve funds for the payment of the principal of such bonds due in subsequent fiscal years. Said bonds shall mature at such time or times as the Board of Highways shall determine within twenty-five (25) years from their date, and shall bear interest at a rate not exceeding four per centum (4%) per annum, payable semi-annually, and shall be in such denominations and form as the Board of Highways shall determine, and shall be redeemable at such times and at such redemption premiums as shall be determined by the Board of Highways and set forth in said bonds. The principal and interest of said bonds shall be payable in lawful money of the United States of America at the office of the Treasurer of the State of Louisiana, in the City of Baton Rouge, Louisiana, or at the State's fiscal agency in the City of New York, State of New York, at the option of the holder. Said bonds shall be sold to the highest bidder upon sealed proposals at public sale for not less than par and accrued interest, after advertisement published by the Board of Highways at least ten (10) days in advance of the date of sale in newspapers or financial journals published in the Cities of New Orleans, Louisiana, Chicago, Illinois, New York, New York, and such other places as the Board of Highways may determine, reserving to the Board of Highways the right to reject any and all bids, and the right to readvertise for new bids in the manner herein provided.

Said bonds shall be signed by the Governor, the Comptroller and the Treasurer of the State of Louisiana, provided that the signatures of the Governor and Comptroller on said bonds may be printed, lithographed or engraved thereon. Any coupons attached to said bonds shall bear the facsimile signature of the Treasurer of the State of Louisiana. Said bonds are hereby declared to have the qualities of negotiable instruments under the law of Louisiana, and shall not be invalid for any irregularity or defect in the proceedings for the issuance and sale thereof, and shall be incontestable in the hands of bona fide purchasers or holders thereof.

No proceedings or approvals with respect to such bonds or the issuance and sale thereof shall be necessary except such as are contemplated by this Section.

(b) Ten (10%) per centum of proceeds of all bonds issued under the provisions herein shall be allocated for expenditure by the parishes of the state of Louisiana for parish road purposes, said allocation to be apportioned to the parishes on the basis of the number of miles and the cost per mile of parish roads in each parish which are maintained by the police jury. The funds derived from the

sale of the percentage of bonds herein allocated for expenditure by the parishes shall be apportioned to the governing authorities of said parishes in such amounts as it shall be determined they are entitled to under the provisions hereinabove contained. The governing authorities of the said parishes shall expend such funds as they are received from the sale of the bonds herein provided for on the construction, maintenance, improvement and extension of parish roads and the necessary bridges, overpasses, underpasses and tunnels situated thereon. Said construction, maintenance, improvement and extension is to be approved of and performed by the Department of Highways.

(2)(a) No bonds may be issued under the authority of this Section unless the moneys paid into the Long Range Highway Fund during the preceding fiscal year shall have been not less than twice the maximum payment required to be made in any fiscal year on account of the principal, interest, sinking fund or reserve fund requirements with respect to all bonds issued and outstanding under authority of Article VI, Section 23, of the Constitution of Louisiana, and of this Section and the bonds then proposed to be issued, which facts shall be certified to the Board of Highways by the Treasurer of Louisiana and the determination of such facts so made by the Treasurer of Louisiana shall be conclusive.

(b) No more than Thirty Million Dollars ($30,000,000.00) in bonds shall be issued in any one fiscal year and no more than a total of Sixty Million Dollars ($60,000,000.00) in bonds shall be issued under the authority of this Section. This provision is hereby excepted from the contractual obligation to the holders of the bonds issued under authority of this Section and may be changed by constitutional amendment without violating the contractual arrangement with said bondholders.

(3) The Department of Highways shall be entitled to withdraw in each fiscal year all moneys remaining in the Long Range Highway Fund, after the Treasurer of Louisiana shall have first set aside the amounts required for the payment of the principal of and the interest upon outstanding bonds issued under authority of Article VI, Section 23, of the Constitution of Louisiana, and of this Section, and shall be entitled to use such moneys for the construction, maintenance, improvement and extension of State highways and the necessary bridges, overpasses, underpasses and tunnels situated thereon, and for the construction of roads and bridges on the parish road system, now or hereafter existing, in the amount of Two Million Three Hundred Fifty-seven Thousand Dollars ($2,357,000.00) each fiscal year.

(4) The tax of four cents (4¢) per gallon on gasoline, benzine, naphtha and other motor fuels and the additional tax thereon of one cent (1¢) per gallon now levied under authority of Article VI, Section 22, of the Constitution, shall continue to be levied until all dedications of the proceeds of said taxes shall have expired, at which time said taxes shall be consolidated into a tax of five cents (5¢) per gallon on gasoline, benzine, naphtha and other motor fuels and said tax shall continue to be levied so long as any bonds issued under authority of this Section are outstanding and the proceeds of such tax shall be paid into the Long Range Highway Fund and applied as provided in this Section.

If science or invention should reduce the use and consumption of gasoline, benzine, naphtha or other motor fuels to such an extent that the tax on such commodities should not be sufficient to retire the bonds issued under the authority of this Section, including the interest due thereon, then the Legislature shall have the authority to levy a tax upon any commodity, substance, appliance or paraphernalia, or to impose a license upon the right to sell or make use of such commodity, substance, appliance or paraphernalia, which may be sold or used to generate or supply motor fuel or other power for transportation; to levy such tax or license, or both, or such other taxes as may be necessary to pay said bonds and the interest thereon, and this authority shall in no wise affect the tax levied under the authority of the Constitution and statutes of the State upon gasoline, benzine, naphtha or other motor fuel as defined by law, or be subject to any limitation imposed by the Constitution.

In like manner, the one cent (1¢) gasoline tax levied under Article VI(A), of the Constitution, the use fuel tax, the tax on lubricating oil, and taxes for licenses on all motor vehicles and other vehicles shall

continue to be levied so long as any bonds issued under authority of this Section are outstanding and the proceeds of such taxes subject to prior dedication, as aforesaid, shall be paid into the Long Range Highway Fund and applied as provided in this Section.

(5) Except as otherwise provided in Section (2)(b) hereof, the provisions of this Section shall constitute a contract between the State of Louisiana and the holder or holders of any bonds or coupons issued under the authority hereof.

(Added by Acts 1961, No. 101, adopted Nov. 6, 1962.)

CA 6 29

Repealed by Acts 2011, No. 248, §1.

§29. Repealed by Acts 2011, No. 248, §1.

CA 6 29.1

29.1 to 29.4 Repealed by Acts 1983, No. 439, 2.

§29.1. §§29.1 to 29.4 Repealed by Acts 1983, No. 439, §2.

CA 7 51

Justice of the peace courts; city courts

ARTICLE VII. JUDICIARY DEPARTMENT

MUNICIPAL COURTS

§51. Justice of the peace courts; city courts

Section 51. A. Abolition of justice of the peace courts; new courts. The legislature shall have the power to abolish justice of the peace courts in wards embracing the parish seat, or containing cities of more than five thousand inhabitants, and to create in their stead courts with such civil jurisdiction as is now vested in justices of the peace, provided that such courts in cities of not in excess of ten thousand inhabitants shall have civil jurisdiction, concurrent with that of the district court, where the amount in dispute or the value of the movable property involved does not exceed five hundred dollars, exclusive of interest and attorney fees; and with criminal jurisdiction which shall not extend beyond the trial of offenses not punishable by imprisonment at hard labor under the laws of this state; and said courts shall have jurisdiction for holding of preliminary examinations in cases not capital, for the requiring of bonds to keep peace and for the trial of cases covering the violations of municipal and parochial ordinances; and the judges of such courts shall have authority to perform marriage ceremonies. In addition to all other jurisdiction now vested in the city court of the city of Shreveport, said court shall have criminal jurisdiction of all those portions of the parish of Bossier which are within, or which may later be taken into the city limits of the city of Shreveport.

B. Repealed by Acts 1976, No. 84, §3.

C. [Implemented by Acts 1975, No. 130, §1, as LSA-R.S. 13:1952.1.]

D. Judges; compensation; election; term. The compensation of the Judges of such Courts shall be fixed by the Legislature and shall be paid by the parishes and cities in which they are or may be established, in such proportions as may be provided by law. The judges of said courts, the city of Baton Rouge excepted, shall be elected for terms of six years; provided that the Legislature may hereafter authorize and direct that the Judge of the City Court of Baton Rouge may be elected for a term of six years. The Judges of said courts now in office, the City of Baton Rouge excepted, shall remain in office until the 31st day of December, 1954, and every six years thereafter, said judges shall be elected at the election for Representatives in Congress.

E. Ordinance violations; jurisdiction. The Legislature may vest in mayors, or in other municipal officers, such jurisdiction over the violation of municipal ordinances, as may be found necessary.

F. [Self-operative]. The provisions of this section shall be self-operative.

(Amended by Acts 1934, No. 79, adopted Nov. 6, 1934; Acts 1936, No. 63, adopted Nov. 3, 1936; Acts 1944, No. 317, adopted Nov. 7, 1944; Acts 1950, No. 564, adopted Nov. 7, 1950; Acts 1956, No. 606, adopted Nov. 6, 1956; Acts 1962, No. 512, adopted Nov. 6, 1962; Acts 1968, No. 692, adopted Nov. 5, 1968.)

CA 7 85

Stenographers; minute clerks; salaries; deputy sheriffs; judges' vacations and absences

JURISDICTION

§85. Stenographers; minute clerks; salaries; deputy sheriffs; judges' vacations and absences

Section 85. Each of the judges of the said Criminal District Court shall appoint his stenographer and his minute clerk with such salaries as may be now or hereafter authorized by law. The Criminal Sheriff for the Parish of Orleans shall assign a deputy sheriff to each of said divisions or sections of said court to act as crier.

The judges of the said Criminal District Court shall have the power to regulate the order of their vacations, and to authorize any judge of said court to act in the place of an absent judge.

CA 7 91

First city court; jurisdiction; pleadings; authority; procedure; costs; appeals; small claims

CITY COURTS FOR THE CITY OF NEW ORLEANS

§91. First city court; jurisdiction; pleadings; authority; procedure; costs; appeals; small claims

Section 91. A. The territorial jurisdiction of the first city court embraces all that part of the city of New Orleans on the left bank of the Mississippi River. It has exclusive original jurisdiction in all cases where the amount in dispute or fund to be distributed does not exceed one hundred dollars, exclusive of interest, including suits for the ownership or possession of movable property not exceeding that amount in value, and including suits by landlords for possession of leased premises when the monthly rent does not exceed one hundred dollars. It has concurrent jurisdiction with the civil district court for the parish of Orleans in all cases except divorce, alimony, titles to real estate and probate matters, when the amount in dispute or fund to be distributed exceeds one hundred dollars but does not exceed one thousand dollars, exclusive of interest, attorney fees, and penalties, including suits for the ownership or possession of movable property not exceeding one thousand dollars in value. It may issue the necessary writs in all cases to carry its jurisdiction into effect, irrespective of the value of the property seized. It has jurisdiction over incidental demands filed therein and necessarily connected with or growing out of the principal demand, irrespective of the amount in dispute or the value of the property. Pleadings therein shall be in writing, except as otherwise provided in this Section.

B. In all cases where the amount involved is less than twenty-five dollars, the pleadings need not be in writing, but the court shall preserve a record of the proceedings in the manner provided by law for trials before justices of the peace. The judges of the court shall assign one of their number to try, during stated periods, such cases under rules and regulations adopted and prescribed by the court.

C. Until otherwise provided by the Legislature, the allotment, re-allotment, and trial of cases, the rules of procedure, the taking of evidence, the rendition and execution of judgments, the service of process, the execution of writs, and the manner of taking appeals shall remain as now provided by law. Costs in the first city court shall be fixed and regulated by the judges in control of the judicial expense fund for the parish of Orleans.

D. Appeals from the first city court in cases where the amount in dispute or the fund to be distributed does not exceed one hundred dollars, exclusive of interest, shall be taken to the civil district court for the parish of Orleans, where they shall be tried de novo, as provided in Article VII, Section 81 of this Constitution. Appeals in all other cases shall be taken to the court of appeal for the fourth circuit.

E. The judges of the first city court have authority to celebrate marriages, to issue the necessary licenses therefor, to execute commissions to take testimony, and to receive the fees allowed by law therefor.

The present judges, clerk, and constable for the first city court shall be retained in their respective offices until the expiration of their respective terms, or until their successors have been elected and have qualified.

(Amended by Acts 1926, No. 293, adopted Nov. 2, 1926; Acts 1928, No. 197, adopted Nov. 6, 1928; Acts 1936, No. 64, adopted Nov. 3, 1936; Acts 1952, No. 437, adopted Nov. 4, 1952; Acts 1958, No. 561, adopted Nov. 4, 1958.)

CA 7 96

Establishment; jurisdiction; appeals; procedure; judges

THE JUVENILE COURT

§96. Establishment; jurisdiction; appeals; procedure; judges

Section 96. Parish of Orleans--Jurisdiction--Appeals--Procedure--Judge--Salary and term of office. There shall be a Juvenile Court for the Parish of Orleans, which shall have jurisdiction, except for capital crimes and crimes defined by any law defining attempted aggravated rape committed by children fifteen years of age or older, of proceedings concerning neglected or delinquent children under seventeen years of age. The court shall also have jurisdiction of all cases of desertion or nonsupport of children by either parent, or of nonsupport of wives by their husbands and also of the adoption of children under seventeen years of age. Upon the effective date of this amendment the Juvenile Courts shall be divested of jurisdiction and trial of all persons charged with contributing to the neglect or delinquency of children under seventeen years of age, and all persons charged with the violation of any law now in existence or hereafter enacted for the protection of the physical, moral or mental well-being of children under seventeen years of age, not punishable by death or hard labor, the jurisdiction and trial of all persons so charged is hereby vested in the Criminal District Court for the Parish of Orleans. All such cases, pending and undisposed of, and the records thereof upon the effective date of this amendment, shall be transferred, by order of a Juvenile Court judge to the Criminal District Court for the Parish of Orleans for further proceedings in accordance with law, and such transfer shall be deemed perfected upon the signing of such order.

Appeals shall lie to the Supreme Court of the State of Louisiana from all final judgments rendered by the Juvenile Court. An appeal shall lie on questions of law and of fact when the judgment of the court affects the custody, care or control of children under seventeen years of age, but such appeal shall not discharge the child to whom said judgment relates from the custody of the Juvenile Court or of the person, institution or agency to whose care such child may be committed by the Juvenile Court, unless the Supreme Court shall so order. An appeal also shall lie on questions of law and of fact in adoption proceedings. In all other cases an appeal shall lie on questions of law alone.

The Legislature shall have power to regulate the manner of conducting all proceedings in said Juvenile Court and appeals from all final judgments, and the number and duties of the officers thereof and all other matters pertaining thereto. Proceedings in the Juvenile Court concerning neglected or delinquent children under seventeen years of age are not required to be instituted by indictment, information or affidavit.

The judges of the Juvenile Court for the Parish of Orleans shall try cases and consider all matters coming before said court. The legislature by a two-thirds vote of the membership of each house shall fix the salary and the number of judges of the Juvenile Court for the Parish of Orleans. The terms of office of said judges shall be eight years. The judges of the Juvenile Court for the Parish of Orleans shall be elected by the qualified electors of the Parish of Orleans. They shall be learned in the law and shall have practiced law in this state for not less than five years previous to their election and shall have resided in the Parish of Orleans for at

least two years immediately preceding their election. The successors to the judges of said court at the time of the final adoption of this amendment to the Constitution shall be elected at the respective nearest Congressional elections preceding the expiration of the respective terms of office of such judges. Whenever a judge of the Juvenile Court for the Parish of Orleans is prevented from holding court for any cause whatever, and that fact is made to appear by a certificate from a judge of said Juvenile Court or Clerk of said Juvenile Court to the Supreme Court or any Justice thereof, the public interest so requiring, the Supreme Court, in its supervisory powers, may assign any district judge or appoint any lawyer having the same qualifications for judge of the Juvenile Court to hold court and discharge the duties of said Judge of the Juvenile Court. Any lawyer thus designated and appointed shall be paid in the same manner as the salary of the judges of the Juvenile Court for the Parish of Orleans. Prior acts of the Legislature, including those which it may have enacted at its regular session in 1968, pertaining to the salary and the number of judges of the Juvenile Court for the Parish of Orleans are hereby ratified and confirmed.

(Amended by Acts 1936, No. 60, adopted Nov. 3, 1936; Acts 1938, No. 390, adopted Nov. 8, 1938; Acts 1944, No. 322, adopted Nov. 7, 1944; Acts 1948, No. 513, adopted Nov. 2, 1948; Acts 1968, No. 706, adopted Nov. 5, 1968.)

CA 7 97

Time of election of judges and other parish officers

§97. Time of election of judges and other parish officers

Section 97. The election of judges and other officers for the parish of Orleans and City of New Orleans herein provided for, the time of which is not specially fixed, shall be held at the time of the parochial and municipal elections; provided, the judges of the Court of Appeal, and of the Civil and Criminal District Courts, and of the city courts, and of the Juvenile Court, shall serve until December 31st of the year in which their terms shall expire, and their successors shall be elected at the Congressional election next preceding.

CA 10 1

Taxing power; specific taxes

ART. X. REVENUE AND TAXATION

§1. Taxing power; specific taxes

Section 1. Vesting of power; restrictions; assessments and valuations. The power of taxation shall be vested in the Legislature; shall never be surrendered, suspended or contracted away; and all taxes shall be uniform upon the same class of subjects throughout the territorial limits of the authority levying the tax, and shall be levied and collected for public purposes only. No property shall be assessed for more than its actual cash value, ascertained as directed by law, and all tax-payers shall have the right of testing the correctness of their assessments before the courts at the domicile of the assessing authority, or as may be directed by law. The valuation and classification fixed for state purposes shall be the valuation and classification for local purposes; but the taxing authorities of the local subdivision may adopt a different percentage of such valuation for purposes of local taxation.

Income taxes. Equal and uniform taxes may be levied upon net incomes, and such taxes may be graduated according to the amount of the net income. Public officials shall not be exempted. Reasonable exemptions may be allowed.

Reforestation; valuation agreements; severance tax. For the purpose of encouraging the reforestation of denuded lands, contracts fixing the assessed valuation of the specific lands for the duration of the agreements, and fixing a total severance tax based on the value of forest products when severed, three-fourths of which shall go to the parish where they are severed, and which severance tax, for a period not to exceed fifty years from the date of such contract, shall be in lieu of all other taxes on said forest products, are hereby authorized under such regulations, terms and conditions as may be prescribed by law; and the regulations, terms and conditions of such contracts as authorized may be made retroactive by the consent of the parties as respects the limit of taxation, on contracts theretofore entered into.

General provisions. Any legislation adopted at the regular session of the Legislature in 1934 based upon this proposed amendment shall be validated and ratified by the adoption of this amendment.

The said income tax schedule of rates shall never exceed the schedule imposed in House Bill No. 339 of the Regular Session of the Legislature for the year 1934.

Severance tax on timber. Repealed by Acts 1975, No. 460.

Distribution of tax. Repealed by Acts 1975, No. 317.

Valuation. After the effective date of this amendment, no additional value shall be added to the assessment of timber in excess of such value as was included in the assessment of said timber at the time of the adoption of this amendment.

Classification of forest lands. Repealed by Acts 1975, No. 170.

Assessment of forest lands; liability for ad valorem taxes. Repealed by Acts 1975, No. 170.

Repeals; contracts. Any provision of this constitution, and particularly of Section 1 (as amended by Acts Nos. 162 of 1926 and 81 of 1934) and 21 (as amended by Acts Nos. 61 of 1932, 395 of 1938, 392 of 1940, and 546 of 1948), of Article X thereof, and of any law of this state, in conflict with the provisions of this amendment, to the extent of such conflict only, is hereby repealed. Provided, that no contract heretofore entered into under the authority of Section 1 of Article X of the Constitution as amended and Act No. 90 of 1922, Act No. 71 of 1924 as amended, R.S. 56:1471 through 1495, and Acts Nos. 120 and 121 of 1926 shall be held to have been impaired by the provisions of this amendment.

Self-operative effect. This amendment shall be self-operative and no legislation shall be required to carry it into effect except as otherwise provided herein. The provisions of this amendment shall take effect on January 1, 1955.

Amended by Acts 1926, No. 162, adopted Nov. 2, 1926; Acts 1934, No. 81, adopted Nov. 6, 1934; Acts 1954, No. 759, adopted Nov. 2, 1954.

CA 10A 4

Annual payment to Louisiana State University and Agricultural and Mechanical College

ART. X-A. AD VALOREM PROPERTY TAXATION

§4. Annual payment to Louisiana State University and Agricultural and Mechanical College

Section 4. Beginning with the fiscal year commencing on July 1, 1973, and in each such fiscal year thereafter, there shall be paid for the endowment and support of Louisiana State University and Agricultural and Mechanical College, from the general fund of the state the sum of One Million Dollars ($1,000,000.00) which amount shall be in lieu of the same amount prescribed to be paid to it for its endowment and support from the avails of the tax presently being levied on taxable property in the state pursuant to Article XII, Section 17 of this constitution.

(Added by Acts 1972, Ex.Sess., No. 17, adopted Nov. 7, 1972.)

CA 14 3(D)

Acquisition and financing of sewerage improvements

Art. XIV. PAROCHIAL AND MUNICIPAL AFFAIRS

§3(d). Acquisition and financing of sewerage improvements

Section 3(d). The governing authority of East Baton Rouge Parish may create within such parish sewerage districts, including one or more consolidated sewerage districts comprised of one or more existing sewerage districts, together with, if so determined by the governing authority, territory not within the boundaries of an existing sewerage district. Consolidated sewerage districts so created shall constitute sewerage districts within the meaning of sub-section c of Section 14 of Article XIV of the Constitution and as such shall enjoy all rights, powers and privileges enjoyed by other sewerage districts under the provisions of said section, including the right to issue bonds, and shall also have the right to issue certificates of indebtedness secured by local or special assessments.

Before any such consolidated district shall be finally created the governing authority of the parish shall publish in the official journal of the parish at least once not less than fifteen days prior to the date of hearing a notice of its intention to create such district and fixing a date for the holding of a public hearing in which all persons interested may be heard on the question of benefit accruing to their property by reason of the creation of the district. The governing authority in determining the boundaries of any such consolidated district shall take into consideration the question of benefits accruing to the property therein. Such notice of hearing shall set forth the proposed name and boundaries of the district, list the districts to be so consolidated and state the amount of outstanding indebtedness of each and shall state the time and place fixed for the hearing. Following the hearing on the creation of any such district the resolution creating such district shall be published one time in the official journal of the parish. Thirty days after such publication the creation of the district shall become incontestable and no court shall have any right to entertain litigation questioning the legality of the creation of such district. If the governing authority shall desire to call an election in any such district on the issuance of bonds, the levy of special taxes or the assumption of indebtedness, notice of such election may be published during the expiration of such thirty day period.

At the expiration of such thirty day period, sewerage districts included in any such consolidated district shall no longer have the right to issue bonds and all books and records and assets thereof shall be transferred to the consolidated district. Unless such consolidated district shall vote to assume the indebtedness of each underlying district as hereinafter provided, it shall be the duty of the governing authority of the consolidated district to cause taxes to continue to be levied for the payment of the outstanding indebtedness except that where such indebtedness of any underlying district consists of revenue bonds payable from service charges or obligations payable from the proceeds of special assessments, the governing authority shall continue to impose and collect such service charges and assessments. Such taxes as may be levied by the governing authority of the consolidated district in the underlying districts shall be entitled to the benefit of the exemption and reimbursal authorized by R.S. 39:253.

Consolidated sewerage districts created hereunder shall have all rights, powers and privileges granted to and enjoyed by other sewerage districts under the Constitution and laws of Louisiana.

The creation of any consolidated sewerage district hereunder shall not affect or impair in any manner contract rights enjoyed by the holders of any outstanding bonds of the underlying districts and to the extent required by such contract rights, taxes, special assessments and service charges on the property subject to the payment of principal of and interest on such bonds shall continue to be levied as above provided, provided however, that any consolidated sewerage district may assume all indebtedness of its underlying districts in the manner and with the effect provided by R.S. 39:661 et seq. for the assumption of indebtedness by parishes. In the event indebtedness is so assumed, taxes for the payment thereof shall be levied by the governing authority on all taxable property in the consolidated district. Where sewerage districts consolidated into any consolidated district hereunder have been in existence prior to August 1, 1956, the creation of the consolidated district will be solely for the purpose of continuing the sewer improvement programs for which the districts so consolidated were originally created and the provisions of R.S. 39:253 shall be regarded as applicable in all respects to all taxes levied by any such consolidated district and such district shall be considered to be a district created prior to August 1, 1956, for all purposes of said section.

For the purpose of this section, any sewerage district which may have been theretofore created and which does not at the time of consolidation have outstanding any indebtedness or unexpired special taxes may be considered by the governing authority to be an existing district for purposes of consolidation or such district may be abolished by the governing authority and the territory therein contained regarded as unorganized territory for sewerage purposes.

Any consolidated sewerage district created hereunder in addition to its right to issue bonds for improvement purposes payable from sewer revenues is hereby empowered to issue its refunding bonds for the purpose of refunding any outstanding bonds of one or more of its underlying districts, or in its discretion, may authorize and deliver a single issue of revenue bonds for both improvement and refunding purposes. Nothing in this paragraph shall be construed to authorize the refunding of any bonds which have not matured or been properly called for redemption under a right of redemption therein reserved or which the holders thereof may not voluntarily surrender. Refunding bonds so authorized shall be authorized and issued in the manner provided by law for the issuance of other bonds of sewerage districts and shall be secured in the manner so provided by law, except that the governing authority may, in its discretion, provide for changes in the source of payment of such bonds as it may consider desirable and except that any refunding bonds so authorized may be either sold or may be delivered in exchange for a like principal amount of the bonds refunded or may be sold in part or exchanged in part. Where any such refunding bonds are issued for the purpose of refunding bonds which are maturing or have been called for redemption within a period of six months from the issuance of such refunding bonds, such bonds may be sold and the proceeds thereof escrowed to be used in paying the bonds refunded on the date on which they so become payable through maturity or call for redemption. No election shall be necessary to the issuance of such refunding bonds. The provisions of law applicable to maturities and interest rates borne by other revenue bonds of sewerage districts shall be applicable to such refunding

bonds. Refunding bonds so issued shall not exceed in principal amount the principal amount of the bonds to be so refunded. Where any such underlying district has outstanding bonds payable from ad valorem taxes and the indebtedness represented by such bonds is assumed by the consolidated district as herein authorized, the bonds of such underlying district may be refunded into bonds of the consolidated district in the manner provided in this paragraph for the refunding of revenue bonds.

The governing authority may, in its discretion, pledge the full faith, credit and resources of the issuing sewerage district or of East Baton Rouge Parish to the payment of principal and interest on any bonds, certificates or other obligations authorized by any sewerage district in said parish whether or not such bonds, certificates or obligations are payable, under the law pursuant to which they are issued, solely from sewerage service charges, from special assessments, from the proceeds of ad valorem taxes or any combination thereof. Where the full faith, credit and resources of any such district or of the parish is so pledged, it shall be the duty of the governing body to provide by appropriate resolution for the manner in which the general revenues and tax proceeds of such district or of the parish, as the case may be, shall be made applicable to the remedying of any deficits which may exist in the revenues pledged to the payment of such bonds, certificates or other obligations. Said resolution may provide that the governing body of the parish will to the extent necessary to make certain the prompt and full payment of all principal and interest due on such bonds, certificates or obligations of any district issued pursuant hereto, set aside, dedicate and pledge so much of the general revenues of the parish in each year for the years through which the bonds, certificates or obligations are payable as may be necessary to pay them promptly in principal and interest as they mature, and to apply to the payment of such bonds, certificates or obligations such other tax revenues as may be lawfully levied and collected by the said parish to pay the said debt. Where as the result of pledging of such full faith, credit and resources general revenues or tax proceeds are used for the purpose of remedying any such deficit or deficits the parish shall be entitled to reimbursement from the first revenues pledged to the payment of such bonds, certificates or obligations thereafter received and not currently required for the payment of principal thereof or interest thereon.

No bonds, certificates or obligations to which the payment of the full faith and credit of any issuing sewerage district or of East Baton Rouge Parish or of any municipal corporation therein are pledged hereunder but which are primarily payable from sewerage service charges, special assessment proceeds, or revenues other than ad valorem taxes, shall be taken into consideration or regarded as an indebtedness of such district or the parish or such municipal corporation for purposes of the debt limitations created by sub-section f of Section 14, Article 14 of the Constitution and by the second following paragraph of this sub-section. If indebtedness of one or more underlying districts is assumed by a consolidated sewerage district, such assumed indebtedness shall be regarded as an indebtedness of the consolidated sewerage district for the purpose of such debt computations.

Any municipal corporation in the Parish of East Baton Rouge may by resolution pledge its full faith, credit and resources to the payment of principal and interest on any bonds, certificates or other obligations issued by said municipal corporation or by any sewerage district in said municipal corporation and local improvement area for sewerage purposes in the

same manner, and with the same effect as provided for in the foregoing provisions authorizing the pledge of full faith, credit and resources of the Parish of East Baton Rouge.

Notwithstanding any limitation elsewhere contained in the Constitution or statutes of Louisiana, East Baton Rouge Parish, any municipal corporation in said parish, and any sewerage district in said parish may incur debt and issue bonds for sewerage purposes which including the existing bonded debt of such subdivision for such purpose, amount in the aggregate to a maximum of fifteen per centum of the assessed valuation of the taxable property in such subdivision as ascertained by the last assessment for parish purposes previous to the incurring of such indebtedness. No indebtedness incurred by such subdivision under paragraph e of Section 14 of Article 14 need be considered in the making of such computation and the last assessment previous to incurring such indebtedness shall be the last assessment completed prior to the issuance of any such bonds regardless of the assessment in effect on the date of the holding of any election at which such bonds may have been voted.

Where the full faith, credit and resources of the parish or of any sewerage district or municipal corporation shall have been pledged to the payment of bonds pursuant to the provisions of this subsection or of any appropriate legislative act, all property not exempt from taxation under the Constitution lying within the boundaries of such parish or of such sewerage district or municipal corporation, regardless of location, shall be subject to the levy of such taxes as may be necessary to the payment of principal of and interest on such bonds, certificates or other obligations.

Any resolution authorizing the issuance of bonds, certificates or obligations for sewerage purposes by East Baton Rouge Parish or by any municipal corporation or sewerage district therein and any resolution pledging the full faith, credit and resources of any such issuing district or of the parish or municipal corporation to the payment of any bonds, certificates or other obligations hereunder shall be published one time in a newspaper of general circulation in the parish subsequent to the adoption of such resolution. If the validity of any such resolution and the provisions thereof or of the bonds to be issued pursuant thereto or of the pledge of the full faith, credit and resources of the parish or issuing district or municipal corporation is not questioned in appropriate litigation within thirty days from the date of publication of such resolution, such resolution and the provisions thereof and the validity of such pledge of full faith, credit and resources shall be conclusively presumed to be legal and binding and no court shall thereafter have authority to inquire into such matters.

Any sewerage district or municipality in the Parish of East Baton Rouge is hereby vested with full power and authority to establish, acquire, construct, improve, extend and maintain within said district or municipality, or within a designated area within said municipality or district such sewerage facilities as may be required, with all necessary equipment and installations in connection therewith, including sewerage treatment and disposal facilities, pumping and lift stations, and intercepter sewer and trunk lines, within or without any such district, municipality or area, and shall have full power and authority to levy and collect local or special assessments on the real property to be benefited thereby within the said area served within said district or municipality sufficient in amount to defray the total cost of said improvement. Said special assessment shall be computed either on a square foot basis or on a front foot basis, as shall be determined by the governing authority of the district or municipality; either method of apportionment of cost as finally determined by the

governing authority is hereby declared to be reasonable and proper as to benefits received by properties assessed, provided that either the one method or the other shall be applied as to the whole of each separate project involved. Except as provided in the Plan of Government of East Baton Rouge Parish and as is herein expressly provided, the procedure to be followed by the governing authority of the Parish of East Baton Rouge any district or municipality taking advantage of this paragraph shall be as provided for under the provisions of Sub-Part A of Part II of Chapter IX of Title 33 of the Louisiana Revised Statutes of 1950.

Any municipal corporation or sewerage district shall, by the adoption of an appropriate resolution and without the necessity for other procedure, have full power and authority to issue revenue bonds pursuant to the provisions of any law now or hereafter enacted authorizing the issuance of revenue bonds by a municipal corporation or sewerage district. Any such resolution shall be published one time in a newspaper published in the parish. For a period of thirty days from the date of the publication any person at interest may contest the legality of the resolution and of the bonds to be issued pursuant thereto and the provisions securing the bonds. After the expiration of thirty days no one shall have any right of action to contest the validity of the bonds or the provisions of the resolution pursuant to which the bonds were issued, and all of the bonds shall be conclusively presumed to be legal, and no court shall thereafter have authority to inquire into such matters.

Wherever in the Constitution and Laws of Louisiana powers are imposed in police juries with respect to the creation, operation and financing of special districts such term, in the case of any parish in which the police jury has been replaced by a board, council or commission as the governing authority of the parish, shall be understood to refer to such board, council or commission.

This constitutional provision shall be self-executing and no legislative act shall be necessary to the full operation and effectiveness of this section. All laws heretofore enacted by the Legislature authorizing the doing of any of the acts contemplated by this section, including acts adopted by the 1958 Legislature, are hereby ratified, validated and confirmed. The provisions hereof are supplemental and in addition to all other applicable constitutional and statutory authorization, and nothing herein shall be construed as preventing East Baton Rouge Parish, or any municipal corporation or sewerage district therein from taking advantage of such other statutory and constitutional procedures. If any provision or item of this subsection or the application thereof is held invalid, such invalidity shall not affect other provisions, items or applications of this subsection which can be given effect without the invalid provision, item or application, and to this end the provisions of this subsection are hereby declared severable.

(Added by Acts 1958, No. 550, §1, adopted Nov. 4, 1958.)

CA 14 15.1

Fire and police civil service; municipalities of 13,000 to 250,000

§15.1. Fire and police civil service; municipalities of 13,000 to 250,000

1. Applicability. This Section applies to any municipality which operates a regularly paid fire and police department and which has a population of not less than thirteen thousand nor more than two hundred fifty thousand according to the latest regular federal census for which the official figures have been made public.

2. Short Title. This Section shall be known and may be cited as "The Municipal Fire and Police Civil Service Law."

3. Definitions. The following words and phrases when used in this Section shall have the following meaning, unless the context clearly requires otherwise:

a. "Allocation" means the official determination of the class to which a position in the classified service belongs.

b. "Appointing authority" means any official, officer, board, commission, council, or person having the power to make appointments to positions in the municipal fire and police service.

c. "Appointment" means the designation of a person, by due authority, to become an employee in a position, and his induction into employment in the position.

d. "Board" means the municipal fire and police civil service board.

e. "Class" or "class of position" means a definitely recognized kind of employment in the classified service, designated to embrace positions that are so nearly alike in the essential character of their duties, responsibilities, and consequent qualification requirements, that they can fairly and equitably be treated alike under like conditions for all personnel purposes.

f. "Classification plan" means all the classes of positions established for the classified service.

g. "Classified service" means every appointive office and position of trust or employment in the municipal government which has as its primary duty one of the functions specifically set forth to be included in the classified service by the provisions of this Section; and excludes all elective and appointive offices and positions of trust or employment which have a primary duty specifically set forth to be included in the unclassified service by the provisions of this Section.

h. "Demotion" means a change of an employee in the classified service from a position of one class to a position of a lower class which generally affords less responsibility and pay.

i. "Department service" means employment in the public service offered and performed separately by the fire and by the police departments of the municipality.

j. "Eligible" means a person whose name is on the list.

k. "Employee" means a person legally occupying a position.

l. "Employment list" or "lists" means a reinstatement employment list, a promotional employment list, a competitive employment list, and a reemployment list.

m. "Position" means any office and employment in the municipal fire and police services, the duties of which call for services to be rendered by one person.

n. "Promotion" means a change of an employee in the classified service from a position of one class to a position of a higher class which generally affords increased responsibilities and pay.

o. "Promotion employment list" or "promotion list" means an employment list containing the names of eligible persons established from the results of promotion tests given for a particular class of positions which is not specifically required by this Section to be established from the results of a competitive test.

p. "Promotion test" means a test for positions in a particular class which is not specifically required by this Section to be filled by competitive tests, admission to which is limited to regular employees of the next lower class, or the next lower classes when authorized by the rules, in the classified service.

q. "Reemployment list" means an employment list for the entrance or lowest ranking class in the classified service, or in any group of classes as may have been grouped in the classification plan, containing names of regular employees who have been laid off under the "lay off" provisions of this Section. This list shall not be applicable to persons who have resigned or have been discharged.

r. "Regular employee" or "permanent employee" means an employee who has been appointed to a position in the classified service in accordance with this Section after completing his working test period.

s. "Reinstatement employment list" or "reinstatement list" means an employment list containing names of persons eligible for reinstatement in positions of a class from which they have been demoted for reasons other than disciplinary action.

t. Repealed by Acts 1982, No. 651, §§2, 3.

u. "Temporary appointment" means the appointment of an employee for limited period of service without acquisition by the appointee of any continuing right to be retained beyond the period.

4. Effective Date of Provisions. Any system of municipal fire and police civil service under Act 102 of 1944, as amended, or under the provisions of Sections 2471 thru 2508 of Title 33 of the Louisiana Revised Statutes of 1950 which is in force on the effective date of this amendment, is continued in effect under the provisions of this Section.

The rights of any person under Act 102 of 1944, as amended, and under the above Sections of the Revised Statutes which exist on the effective day of this amendment are continued in effect. Every rule, classification, plan, or allocation established under the above provisions which is in force on the effective day of this amendment is continued in effect until it is amended or repealed by the proper authority under this Section.

5. System Classified Civil Service. There is created in the municipal government a classified civil service embracing the positions of employment, the officers, and employees of the municipal fire and police services. The classified civil service shall be known as "the municipal fire and police civil service."

6. Municipal Fire and Police Civil Service Boards. a. A municipal fire and police civil service board is created in the municipal government. The board shall be composed of five members who shall serve without compensation. The board shall have a chairman, vice-chairman, and a secretary. The domicile of the board shall be in the municipality it serves.

b. [Implemented by Acts 1975, No. 363, §1, as R.S. 33:2476, subsec. B.]

c. The first five members of a board shall be appointed by the governing body of the municipality during the ninety day period immediately following the date that this Section takes effect in a municipality under paragraph 1.

The members of the board shall be appointed by the governing body as follows:

(1) One shall be appointed by the governing body upon its own nomination.

(2) Repealed by Acts 1983, No. 473, §2.

(3) Two members shall be appointed who shall be first nominated and elected by and from the regular employees of the fire and police departments as follows:

One member shall be elected and appointed from the fire department, and one member shall be elected and appointed from the police department. The employee-nominee from each department shall be elected by secret ballot of the regular employees of his respective department at an election to be called and held for that purpose by the chief of the department. The chief of each department shall call such an election within forty-five days after this Section takes effect in the municipality by posting, for a fifteen day continuous period immediately preceding the election, a notice thereof on the bulletin board of each station house of his department; and, shall officially notify the governing body of the municipality within the ten day period immediately following the election, the name of the employee-nominee so elected by the regular employees of his department. The chief of the department shall vote in the election only in the case of a tie vote.

d. The term of office for all members of the board shall be for a period of three years, except that the first member appointed by the governing body of a municipality upon its own nomination shall serve for a period of two years; the first employee members nominated and appointed as provided above shall serve a term of one year. Each member shall serve until his successor has been appointed and qualified.

e. Upon the term of office expiring for a member of a board, or because of a vacancy in the office of any member thereof, the governing body of a municipality shall appoint a successor in the same manner as the outgoing member was appointed; and such successive appointment shall be made within ninety days immediately following the expiration or vacancy.

f. Each member shall take the oath of office before entering upon the duties of his office. His oath shall include a statement to uphold the Constitution and laws of Louisiana and of the United States; to administer faithfully and impartially the provisions of this Section and the rules adopted under the authority of this Section.

g. Members of such a board serving under Act 102 of 1944 or under Sections 2471 through Section 2476 of Title 33 of the Louisiana Revised Statutes of 1950 at this [1] time this amendment takes effect shall continue in office until the expiration of the term for which they were appointed.

h. Any member of a board shall be liable to removal from office by judgment of the district court of his domicile for high crimes and misdemeanors in office, incompetency, corruption, favoritism, extortion, oppression in office, gross misconduct, or habitual drunkenness. The district attorney of the district wherein the board member resides may institute such suit, and shall do so upon the written request, specifying the charges, of twenty-five citizens and taxpayers of the municipality of which the board member is a resident. The district attorney shall associate in the diligent prosecution of such suit any attorney selected and employed by the citizens and taxpayers.

i. The governing body of the municipality shall advise, within and not later than the expiration of the ninety day period provided for the appointment of the board members, each appointee of his appointment and term of office as a member of the municipal fire and police civil service board; and, an official record thereof shall be placed in the official minutes of the governing body.

j. The original members of the board shall meet within thirty days after their appointment in their first official meeting; take the oath of office; elect a chairman and vice-chairman; and transact any other business pertinent at that time. The oath of office shall be administered by the city clerk or by any other person having the legal authority to administer it.

k. A chairman and vice-chairman shall be elected by the members of the board. The term for which either the chairman or vice-chairman shall serve as such shall run concurrently with that for

which he was appointed a member of the board; except the term of either office shall terminate upon death of the incumbent, or his resignation from the office or from the board or his removal from the board.

l. (1), (2) Implemented by Acts 1997, No. 1326, §1, eff. July 15, 1997, as R.S. 33:2476(L).

(3) Implemented by Acts 1997, No. 517, §1, eff. July 3, 1997, as R.S. 33:2476(L)(3), and by Acts 1997, No. 1326, §1, eff. July 15, 1997, incorporated in R.S. 33:2476(L).

(4) By requiring the state examiner to act in such capacity. The board may terminate the term of office of any person serving as its secretary at any time. No person serving as secretary of a board, except a member thereof, shall have the right to vote in its proceedings. The secretary shall attend the meetings of the board; keep a record of its proceedings; attend to correspondence directed to him, and other correspondence ordered by the chairman; perform other functions assigned to him by the board; and cooperate with the state examiner in a manner that will assist the examiner to carry out effectively the duties imposed upon him by this Section or those functions which may be requested of him by the board.

m. The board shall meet at any time after its original meeting upon the call of the chairman, who shall give all members of the board due notice thereof. The chairman of the board shall call, and the members of the board shall attend, one regular meeting of the board within each quarterly period of each calendar year. If a chairman fails or refuses to call such quarterly meeting of his board, the members of the board shall meet upon the written call of any two members mailed ten days in advance of the meeting. Four members of the board shall constitute a quorum, and the concurring votes of any three members comprising the quorum of the board shall be sufficient for the decision of all matters to be decided or transacted by it. Meetings of the boards shall be open to the public.

7. Duties of the Board. a. Represent the public interest in matters of personnel administration in the fire and police services of the said municipal government.

b. Advise and assist the governing body, mayor, commissioner of public safety, and the chiefs of the fire and police departments of the municipality, with reference to the maintenance and improvement of personnel standards and administration in the fire and police services, and the classified system.

c. Advise and assist the employees in the classified service with reference to the maintenance, improvement, and administration of personnel matters related to any individual or group of employees.

d. Make, at the direction of the mayor, commissioner of public safety, chief of either the fire or police department, or upon the written petition of any citizen for just cause, or upon its own motion, any investigation concerning the administration of personnel or the compliance with the provisions of this Section in the said municipal fire and police services; review, and modify or set aside upon its own motion, any of its actions, take any other action which it determines to be desirable or necessary in the public interest, or to carry out effectively the provisions and purposes of this Section.

e. Conduct investigations and pass upon complaints by or against any officer or employee in the classified service for the purpose of demotion, reduction in position or abolition thereof, suspension of [1] dismissal of the officer or employee, in accordance with the provisions of this Section.

f. Hear and pass upon matters which the mayor, commissioner of public safety, the chiefs of the departments affected by this Section, and the state examiner of municipal fire and police civil service bring before it.

g. Make, alter, amend, and promulgate rules necessary to carry out effectively the provisions of this Section.

h. Adopt and maintain a classification plan. The classification plan shall be adopted and maintained by rules of the board.

i. Make reports to the governing body, either upon its own motion or upon the official request of the governing body, regarding general or special matters of personnel administration in and for the municipal fire and police services of the municipality, or with reference to any appropriation made by the governing body for the expenses incidental to the operation of the board.

8. Rules. Each board may adopt and execute rules, regulations, and orders necessary or desirable effectively to carry out the provisions of this Section, and shall do so when expressly required by this Section. No rule, regulation, or order shall be contrary to, or in violation of, any provisions, purpose, or intent of this Section or contrary to any other provisions of law. The board may amend or repeal any rule or part thereof in the same manner provided herein for the adoption of the rule. All rules shall be applicable to both the fire and police classified services, unless by express provisions therein, it is made applicable to only one of the services.

A board may adopt any rule, either in its proposed or revised form, after holding a public hearing at which any municipal officer, employee, private citizen, and the state examiner shall be given an opportunity to show cause why the proposed rule, amendment, or any part thereof should not be adopted. Before the board holds this public hearing, it shall furnish at least thirty days notice in advance of the date, time and place therefor to the mayor, commissioner of public safety, and other municipal commissioner whom the rule may in any way affect, the chief and each station of the departmental service to be affected by the adoption of any such rule, and to the state examiner. A copy of all proposed rules to be discussed at any hearing shall be furnished with all notices. Each notice and copy of proposed rule furnished the various stations of a respective department shall be posted upon the bulletin board of each station for a period of at least thirty days in advance of the hearing.

Within thirty days after the board has adopted any rule, whether it is a new rule or amendment of an existing rule, or an abolition in whole or part thereof, it shall furnish an official copy thereof to all persons and places set forth above.

Rules adopted under the authority of this Section shall have the force and effect of law.

9. State Examiner and Deputy State Examiner of Municipal Fire and Police Civil Service.

a. The office of state examiner of municipal fire and police civil service is created. The state examiner shall be a resident and qualified voter of the state. He shall be a person who has had experience in personnel administration, classification, or employment testing in a classified civil service system and shall serve on a full-time basis. He shall receive and be paid a salary set by the State Civil Service Commission in accordance with the State Civil Service Commission's uniform pay plan. The position of state examiner shall be assigned to the same pay range to which the deputy director of state civil service is assigned. The state examiner shall be paid traveling and living expenses while away from his place of residence.

b. The office of deputy state examiner of municipal fire and police civil service is created. The right of appointment, supervision, and discharge of the deputy state examiner is vested in the state examiner. The deputy state examiner is authorized and empowered to exercise the authority and perform the duties of the state examiner as provided in this Section. He shall be a resident and qualified voter of the state. He shall be a person who has had experience in personnel administration, classification, or employment testing in a classified civil service system and shall serve on a full-time basis. He shall receive and be paid a salary set by the state examiner in accordance with the State Civil Service Commission's uniform pay plan. The position of deputy state examiner shall be assigned

to the pay range which is two levels below the pay range to which the deputy director of state civil service is assigned. The deputy state examiner shall be paid traveling and living expenses while away from the place of his residence.

c. The state examiner and the deputy state examiner of the municipal fire and police civil service shall come within and be bound under and amenable to the classified service of the state as established and existing. The state examiner and deputy state examiner shall be subject to the rules adopted and promulgated by the State Civil Service Commission. The state examiner shall be subject to removal and other disciplinary action by the State Civil Service Commission only for a good and sufficient cause set forth in written charges filed with the commission by any one of the municipal fire and police civil service boards created by this amendment or by any qualified elector of the state, and only after a public hearing by the State Civil Service Commission to be held in accordance with rules to be adopted by the commission.

d.(i) The State Civil Service Commission shall exercise no administrative control over the state examiner. Its functions and powers relating to this office shall consist solely of the right of appointment, hearing of charges for removal or other disciplinary action legally brought against the incumbents of this office, and the ordering of his removal or the rendering of such other judgment of a disciplinary nature as it may deem proper after a hearing.

(ii) Notwithstanding the provisions of Item (i) of this Subparagraph the State Civil Service Commission's functions and powers shall also include approval of pay actions for the state examiner.

e. When a vacancy occurs in the office of the state examiner, the State Civil Service Commission shall, within thirty days, make a provisional appointment of any person it deems qualified to fill the vacancy. A competitive examination shall be prepared, administered, and scored under the direction of the State Civil Service Commission in order to establish a list of persons eligible for appointment to the office. As soon as such list can be and is established, the State Civil Service Commission shall appoint any person upon the eligibility list who has the experience required in Subparagraphs (a) and (b) of this Paragraph to fill the office; however, selection preference may be given to any person having such experience in the municipal fire and police classified civil service system. The person appointed shall serve a working test period of six months which shall be considered a portion of the examination. At the termination of such working test period, if successfully completed, the appointee shall become a regular employee as defined in the State Civil Service Law.

f. The state examiner shall maintain a suitable office in the city of Baton Rouge. The officer charged by law with the custody of state buildings shall assign suitable office space to the examiner. The examiner shall appoint employees necessary for him to carry out his duties effectively. All of the employees appointed by the state examiner, except persons employed on a temporary basis to conduct or assist in giving examinations, shall be selected by him after certification to him by the State Department of Civil Service of names from eligible lists established by the State Department of Civil Service; and they shall, in all other respects, be covered by the provisions of existing Civil Service laws and rules and regulations legally adopted by the Department of State Civil Service.

g. Repealed by Acts 2013, No. 313, §3.

h. The state examiner shall take the oath of office and furnish bond for the faithful performance of his duties according to law in the sum of five thousand dollars. The premium of the bond shall be paid from the funds appropriated to the state examiner. The state examiner shall be ex-officio a notary public for the state at large.

i. The state examiner may obtain on a contractual or fee basis the services which his office is unable to supply and which are necessary for his compliance with the provisions of this Section.

j. Implemented by Acts 1999, No. 456, §1, as R.S. 33:2479(G).

k. The state examiner may delegate to the deputy state examiner such of the above duties as he may deem expedient.

10. Appropriations: Facilities for Board. The legislature shall make adequate annual appropriations to enable the state examiner and deputy state examiner to carry out effectively the duties imposed upon them by this Section. The governing body of the municipality shall make adequate annual appropriations to enable the board of the municipality to carry out effectively the duties imposed upon the board and shall furnish the board with office space, furnishings, equipment, and supplies and materials necessary for its operation.

11. Classified and Unclassified Service. a. The classified service shall comprise every position, except those included in the unclassified service, to which the right of employee selection, appointment, supervision, and discharge is vested in the municipal government or with an officer or employee thereof, and which has as its primary duty and responsibility one of the following:

(Fire)

(1) The chief and assistant chiefs; the intradepartmental division, bureau, squad, platoon and company officers of the fire department.

(2) Fire fighting.

(3) Fire prevention; inspection.

(4) Driving, tillering, and operation of fire apparatus.

(5) Operation and maintenance of radio, fire alarm, or signal system.

(6) Fire department instructors in employee training.

(7) Fire salvage and overhauling services; and first aid.

(8) Automotive or fire apparatus repairs, if such service is operated exclusively by and for either or both the fire or police department.

(9) Secretary to the chief. Departmental records clerk.

b. The unclassified service shall comprise the following:

(1) All officers, employees, and positions of employment in the municipal government, not having as a principal duty one of the duties hereinabove provided in the classified service.

(2) Officers elected by popular vote and persons appointed to fill vacancies in elective offices.

(3) Secretaries, stenographers, and all clerical positions not specifically included in the classified service.

(4) Pound keepers, dog catchers, janitors, porters, elevator operators, chefs, kitchen helpers and workers, mechanic's helpers, car washers, unskilled labor, special guards at schools, or any part-time, or temporary employee.

(5) Any position of employment, the duties of which are included in the classified service, to which the right of employee selection, appointment, supervision, and discharge is vested in and with those other than the municipal government or an officer or employee thereof.

12. Right of Employee Who Entered Armed Forces to be Reinstated. Any regular and permanent employee who left a position of the departmental service, which now comes within the classified service, subsequent to May 1, 1940, and entered the armed forces of the United States shall be restored to his position and, thereafter, be subject to the rights and jurisdiction of the classified service created by this Section if he makes application therefor to the appointing authority within

sixty days from the date of his honorable discharge or discharge under honorable conditions, and is physically and mentally capable of performing the work of his position to the satisfaction of the appointing authority.

13. Classification Plan. Each board, as soon as practicable (not to exceed a period of eighteen months) after this Section takes effect in the municipality, shall adopt a classification plan for the fire and police services of the municipality. Each classification plan shall consist of classes to be designated either by standard titles, ranks, or a combination thereof, for all positions included in the classified service for each of the fire and police services. The classification plan may be divided into groups of classes. The various classes of positions shall be arranged in each classification plan so as to show the principal and natural lines of promotion and demotion. The classification plan shall be adopted as rules of the board, in the manner provided by this Section for the adoption of rules. Rules creating the classification plan, future classifications, abolition of any classification, any amendment thereto, or revision thereof shall be adopted by a board only after consultation with the appointing authority, and the state examiner. The original classification plan to be established when this Section takes effect in a municipality shall be prepared, after consultation with the appointing authority, and submitted to the board for its approval and adoption, by the state examiner. The board may amend or revise the classification plans before adopting them. The state examiner shall advise and assist the board in all future classifications when requested to do so.

14. Allocation of Positions to Classes. The board, or chairman thereof subject to the subsequent approval of the board, as soon as practicable (not exceeding forty-five days) after the adoption of a classification plan, after consultation with the appointing authorities concerned, shall allocate each position in the classified service to its appropriate class; and thereafter shall likewise allocate each new position created in the service, and, when for the benefit of the service, reallocate positions from class to class.

Whenever the duties of a position are so changed by the appointing authority that the position in effect becomes one of a different class from that to which it is allocated, the change shall operate to abolish the position and to create a new position of the different class.

Whenever the board finds any change in the duties of any position in the classified service was brought about by the appointing authority to effect a reduction in the classification of any employee because of political, religious, or discriminatory reasons, or without just cause, it shall refuse to recognize any such action, and shall order the appointing authority to continue the employee in the position and class with all rights and privileges.

15. Use of Class Titles. The title of each class shall be the official title of every position allocated to the class, for all purposes having to do with the position as such, and shall be used to the exclusion of all other titles on all pay rolls, budget estimates, and official records and reports pertaining to the position, except that any abbreviation or code symbol by the board may be used to designate a position of a class. Any other title satisfactory to the appointing authority may be used in official correspondence and in any other connection not having to do with the personnel processes covered by this Section. No employee shall be appointed, employed, or paid under any title other than that of the class to which the position occupied by him is allocated.

16. Status of Incumbent of Position When Allocated. Every person employed in the municipal fire and police services for a continuous period of at least six calendar months immediately preceding the date that this Section takes effect in the municipality, who was regularly and permanently appointed to a position coming under the classified service, shall be inducted into and bound under the classified service, the provisions of this Section, and the rules adopted hereunder.

When any position is first allocated hereunder, or is reallocated to a different class to correct an error in its previous allocation, or because of a change in the duties of a position which has the

effect of abolishing the position and creating a new position of another class, the employee and the position may continue to serve therein, with the status and all the rights and privileges he would have had under this Section if he had been originally appointed by examination and certification hereunder to a position of the class to which the position has been allocated or reallocated. Such employee however may be transferred without further tests of fitness or certification to any position of the class to which the position was previously allocated while held by the employee.

Any employee who feels himself aggrieved because of any allocation or change in classification affecting his position shall, upon his request, be heard thereon by the board; and the board shall hear and decide the complaint in any manner deemed proper.

17. Methods of Filling Vacancies. Vacancies in positions in the classified service shall be filled by one of the following methods:

a. Demotion

b. Transfer

c. Reinstatement

d. Promotional appointment

e. Competitive appointment

f. Reemployment

g. Temporary appointment.

A vacancy shall be considered filled under any of the methods specified above, and employment thereunder effective, as of the date on which the employee enters upon the duties thereof.

18. Demotion. Demotions of regular employees shall be made by the appointing authority when it becomes necessary to reduce the number of employees in the classified service or in any class therein. Demotions from any class, except for disciplinary action or because of the abolition of an entire class in the classified service, shall be made by demoting employees from lowest to highest in point of total seniority earned in positions of the class plus that earned in any higher classes in the classified service. The names of regular employees demoted for any reason, except for disciplinary action, shall be recorded upon the reinstatement list for the class from which they are demoted in the order in which the demotions are made.

19. Transfer. Any employee may be transferred from any position in the classified service to any other position of the same class within the classified service, at the pleasure of the appointing authority without notice to and confirmation by the board.

Any regular employee so transferred shall have the right of appeal to his board upon the grounds (1) that his transfer was made to a position not included within the class to which his position was previously allocated, or (2) that the position to which he has been transferred is not included within the classified service; or (3) the transfer was made deliberately to discriminate against him.

20. Reinstatement and Reemployment. a. Each employee who, during or at the expiration of his working test period of probation following his promotion after being certified from an appropriate employment list, is rejected and refused permanent status in the position and class to which he was promoted, shall be automatically reinstated to the position from which he was promoted without his name being placed upon any list.

b. All employees whose names appear upon the reinstatement list for a prospective class shall be reinstated in a position thereof, in the reverse order from which their names were placed upon the list, before any other appointment is made therein.

c. All employees whose names appear upon the reemployment list for a class from which they laid off according to the provisions of paragraph 29, shall be reemployed in a position thereof, or offered such appointment, in the reverse order from which their names were placed upon the list for the class, before any other employment or appointment is made in it.

d. Any regular employee who resigns from a position in the classified service may, with the prior approval of the board, be reemployed in a position of the class or in a position of any lower class for which he is qualified, provided, that the reemployment is made within four years of the date of resignation, and that no person whose name appears upon either the reinstatement, employment, or reemployment list for a class to which any such person is reemployed is willing to accept an appointment therein. Any person who is reemployed shall be physically fit to perform the duties of the position to which he is appointed. He shall furnish a favorable medical certificate to the appointing authority and the board after a recent examination by a practicing physician.

21. Establishment and Maintenance of Employment Lists. The board shall establish and maintain employment lists containing names of persons eligible for appointment to the various classes of positions in the classified service, as follows:

a. Names of regular employees who are demoted from any class for a reason other than disciplinary action shall be placed upon the reinstatement list for the class from which they were demoted in the order in which the demotions were made.

b. Only the names of regular employees who have been laid off in accordance with provision of paragraph 29 shall be eligible for entry upon the reemployment list. The names of such persons shall be entered upon the reemployment list for the class from which they were laid off in the order in which the lay-offs were made.

c. A name placed upon either the reinstatement or the reemployment list shall remain thereon for a period of four years. The board, however, may remove the name of any person who refuses an offer of employment following a certification from either list.

d. Names of persons attaining a passing score on a promotion test shall be placed upon the promotion employment list for the class for which they were tested, from highest to lowest, according to their total seniority in the departmental service. The names of persons attaining a passing score on a competitive test shall be placed upon the competitive employment list for the class for which they were tested, from highest to lowest, according to their final test scores.

e. Any person whose name is placed upon the competitive employment list for the entrance or lowest ranking class in the classified service who has served in the armed forces of the United States of America during the times of war, and has been honorably discharged or discharged under honorable conditions, shall have added to his final test score a total of five points at the time of placing his name upon the list. Proof of such service and discharge shall be required by the board in any manner it deems advisable.

f. The minimum and maximum period for which a name may remain upon a promotional and competitive employment list shall be twelve and eighteen months, respectively, for each list.

g. The employment list for which eligibles are obtained from the results of tests given for that purpose shall be reestablished in the manner further provided in this Section.

h. When new names are to be placed upon a promotion list for a given class, the remaining names thereon shall be rearranged with the new names so that all names appearing upon the list for the class shall rank, from highest to lowest, according to total seniority in the departmental service. When new names are to be placed upon a competitive list for a given class, the remaining names thereon shall be rearranged with the new names so that all names appearing upon the list for the class shall rank, from highest to lowest, according to their final test scores.

i. Notwithstanding the provisions of this Section or of any other law to the contrary, the municipal fire and police civil service board of the city of Shreveport shall establish and maintain employment lists as provided in R.S. 33:2491.1.

j. Notwithstanding the provisions of this Section or of any other law to the contrary, the municipal fire and police civil service board of the city of Sulphur shall establish and maintain employment lists as provided in R.S. 33:2491.2.

k. Notwithstanding the provisions of this Section or of any other law to the contrary, the municipal fire and police civil service boards shall establish and maintain employment lists as provided in R.S. 33:2491.3.

22. Tests. Tests to determine the eligibility of applicants for entry upon the promotional and competitive employment lists shall be provided, as follows:

a. The board shall provide through the state examiner for promotional or competitive tests. Official notice of examination shall be posted on the bulletin board in each station of the respective department. The notice shall state (1) class of positions for which tests will be given, (2) whether the tests will be given on a promotional or competitive basis, and (3) the final date on which applications for admission to the tests will be received. The notice shall be posted for a continuous period of thirty days preceding the date for administering the tests. In addition to the posted notice, public notice for all tests to be given on a competitive basis shall be published at least four times during the thirty-day period in the official journal of the municipality in which such tests are to be held. This notice of examination need not reveal the exact date on which tests shall be administered, but all applicants shall be advised of the date, place, and time to report for an announced test at least five days in advance thereof in any manner the board may prescribe.

b. As may be necessary from time to time, the state examiner may call for and administer examinations for the entrance classifications of firefighter, police officer, and for the entrance classes for positions of which the operation and maintenance of a radio, alarm, or signal system for the fire or police service is the primary duty. Tests may be administered at the discretion of the state examiner in any municipality, parish, or fire protection district to which this Section applies. Official notification shall not be made to the extent required under Subparagraph (22)(a) of this Section; however, public notice shall be published at least four times during a thirty-day period in the official journal of the state of Louisiana and may be posted on the bulletin board in each station of the respective department. This notice of examination need not state the exact date on which tests shall be administered, but all applicants shall be advised of the date, place, and time to report for an announced test at least five days in advance thereof in any manner the state examiner may prescribe.

c. Each person in a group of candidates being tested at a given time for the same class of employment shall be given the same test, and it shall be administered in the same manner to each candidate. No questions shall be framed so as to elicit information concerning the political, factional, or religious opinions or affiliations of any applicant.

d. All tests shall be restricted to those matters which will fairly test the relative capacity and fitness of the candidates to discharge the duties characteristic of positions of the class to which they seek to be appointed. Tests may include written or oral questions, trials on the performance of work characteristic of the class, inquiries into facts relating to education, experience, or accomplishments in specialized lines of endeavor, or any combination of these and other elements duly related to the purpose of the tests.

e. Seventy-five percent shall constitute a passing score for all tests administered under the provision of this Section.

f. Promotional tests for positions in the various classes in the classified service, except those classes in which positions shall be filled only from the competitive list, may be held as the need of the service require, but must be given at least one time during each successive period of eighteen months.

g. Competitive tests shall be held only as the needs of the service require and shall be given for classes comprising only the following duties or positions:

(1) Chief of the departmental service.

(2) The entrance or lowest ranking class in the classified service.

(3) The entrance or lowest ranking class in any group of classes where the various classes have been divided into groups by the classification plan.

(4)(a) Operation and maintenance of radio, fire alarm, police alarm, and other signal systems.

(b) Notwithstanding Item (a) of this Subsubparagraph, for the city of Shreveport, operations, management, and supervision of radio, fire alarm, police alarm, and other signal systems.

(5) Automotive or fire apparatus mechanics and repairmen.

(6) Secretary to the chief.

(7) Departmental records clerk.

(8) For a position in any class in the classified service after reasonable efforts by preceding methods provided by this Section have failed to produce names of persons eligible for regular appointment thereto.

h. All tests required by this Section shall be prepared, administered, and scored by the state examiner in accordance with the provisions of this Section. The results of the tests shall be furnished the board for which the tests have been held as soon as practicable after the tests have been administered. All test questions, answers, and papers shall at all times be kept in the custody of the state examiner and shall be produced by him and exhibited by him at the domicile of any board upon its written request.

i. The board for which any test is administered may, at any time, up to six months after receiving the results from the state examiner, receive and review any or all parts of the test and the methods used in its grading, in order to determine whether the test was a fair and reasonable one and was fairly graded. If, after the board reviews any test and consults with the state examiner, it concludes that any item or part of the test was unfair or unreasonable or finds errors in the grading, it may, at its discretion, cause a regrading of the test, and, thereupon, correct or establish the appropriate employment list in accordance with the revised ratings. If the board finds that a fair rating can be determined only from an entire new test, it may cause a new test to be given to all persons taking the previous test and establish a new employment list for the class from the results of such new test.

j. Each applicant who makes a passing score on a test provided by the board through the state examiner under the provisions of Subparagraph (22)(a) of this Section shall be advised, in any manner the board prescribes, of his final score and relative standing on the list appropriate for the class for which he was tested.

k. Each applicant who makes a passing score on a test administered by the state examiner under the provisions of Subparagraph (22)(b) of this Section shall be advised, in any manner the state examiner prescribes, of his final score. Such score may be reported and approved by the board under the provisions of R.S. 33:2491(I). The original eligibility of an applicant under the provisions of this Subparagraph shall be the period of not more than eighteen months after the date on which the signature of the state examiner was affixed to his notification of score.

23. Admission to Tests. Admission to tests provided by the civil service board through the state examiner shall be as follows:

a. Admission to a promotional test shall be limited to regular employees of the class next lower from that for which they are to be examined. However, the rules may provide for admission to be extended to applicants from any one or more of the next lower classes.

b. Admission to competitive tests shall be open to all persons who meet the requirements provided by this Section and the rules.

c. Repealed by Acts 1980, No. 839, §3.

d. Special requirements or qualifications for admission to tests, or for eligibility for appointment, such as age, education, physical requirements, etc., may be established by the rules adopted by the board, after consultation with the appointing authority. Any applicant must be, at the time of his appointment to a position in the classified service, of good health, good moral character, and of temperate and industrious habits.

e. The board may reject the application of any person for admission to tests of fitness, or refuse any applicant to be tested, or may cancel the eligibility of any eligible on any employment list, who

(1) Is found to lack any of the qualifications prescribed, or which may be legally prescribed, as requirements for admission to the tests for the class for which he has applied;

(2) Is physically unfit to perform effectively the duties of a position of the class;

(3) Is addicted to the habitual use of drugs or intoxicating liquors to excess;

(4) Has been adjudged guilty of a crime involving moral turpitude or infamous or notoriously disgraceful conduct;

(5) Has been dismissed from the respective service for delinquency or misconduct;

(6) Has made a false statement of any material fact; or

(7) Has practiced, or attempted to practice, deception or fraud in securing eligibility for appointment or attempting to do so.

Any such facts shall also be considered cause for removal of any employee. The board shall reject any application filed after the time fixed for closing receipt of applications as announced in the public notice of the tests.

24. Certification and Appointment a. Implemented by Acts 1999, No. 1093, §1, as R.S. 33:2494(A).

b. The board shall first certify the name of the person appearing upon the reinstatement list who is eligible for the first reinstatement in the class of the vacant position. The name of this person and all others appearing upon the reinstatement list for the class shall be certified and offered the appointment in the order provided by paragraph 20a before the vacancy is filled by any subsequent method provided by this Section. The appointing authority shall appoint to the vacant position the first person so certified to him who is willing to accept the appointment. If the position is one of a class from which lay-offs have been made as provided by paragraph 29 the names of eligible persons appearing upon the reemployment list for the class shall be certified and offered the appointment in the order provided by paragraph 20c before any other appointment is made thereto.

c. In the event a vacancy cannot be filled by reinstatement, or by reemployment as above provided, the board shall next certify the names of the persons upon the promotional list, in the order in which they appear thereon, for the class in which the vacancy is to be filled. The appointing

authority shall select and appoint to the first vacancy to be filled the one person certified to him who has the greatest seniority in the departmental service. Any remaining positions to be filled in the same class shall be filled by appointing to each such successive vacancy the one of the remaining persons certified therefor who has the next highest seniority in the departmental service. If any one or more persons so certified should refuse the appointment, the appointing authority shall then select and appoint one of the persons certified by the board with the next highest seniority in the departmental service. This procedure shall be followed until the position has been filled by appointment of the one person who has the greatest seniority in the departmental service, and who is willing to accept the appointment, or until each person whose name appears upon the list, has in this order been certified and offered the appointment for the vacancy.

d. Implemented by Acts 1999, No. 1092, §1, as R.S. 33:2494(D).

e. Appointment to any position in the classified service from which the regular employee is away on an authorized leave of absence shall be made in accordance with the provisions of paragraph 26.

f. The appointing authority shall notify the board of the filling of a vacancy as provided in paragraph 33.

25. Implemented by Acts 1997, No. 1391, §1, eff. July 15, 1997, and continued as R.S. 33:2495.

26. Temporary Appointments. Temporary appointments may be made to positions in the classified service without the appointees acquiring any permanent status therein, as follows:

a.(1) When a vacancy is to be filled in a position of a class for which the board is unable to certify names of persons eligible for regular and permanent, or substitute, appointment, the appointing authority may make a provisional appointment of any person whom he deems qualified. When practicable, the appointment should be made by the provisional promotion of any employee of a lower class. A provisional appointment shall not continue for more than three months. No position in the classified service shall be filled by one or more provisional appointments for a period in excess of three consecutive months and successive like periods shall not be permissible. The board may, however, authorize the renewal of such appointment, or authorize such successive appointments for a period not to exceed three additional months whenever it has been impracticable or impossible to establish a list of persons eligible for certification and appointment to a vacancy. Any provisional appointment, if not terminated sooner, shall terminate upon the regular filling of the vacancy in any manner authorized under this Section, and, in any event, within fifteen days after a certification from which a regular, or substitute appointment, as the case may be, can be made under the provisions of this Section. A provisional appointment shall be reported to the board within fifteen days following the appointment.

(2) During the times of war, and after the board continues to offer tests provided by this Section in an effort to obtain persons eligible for regular and permanent appointment to a position of any class which has been permanently vacated by the regular employee thereof, and it finds it impossible to establish a list of persons qualified for certification and permanent appointment to the position in the classified service, it may authorize the appointing authority to fill the position with a provisional appointee until the appropriate employment list can be established.

(3) Provisional appointments may be made in any position until a classification plan is prepared and adopted and for such time thereafter as may be required for the preparation and administration of tests and the establishment of employment lists from the results of the tests. But such special authority shall be valid for a period of not more than eighteen months immediately following the date that this Section takes effect in the municipality.

b. A substitute appointment may be made to any position in the classified service (1) from which the regular and permanent employee is away on an authorized leave of absence, or (2) from which the regular employee is substituting for some other regular employee who is authorized to be away from his respective position. No position shall be filled by a substitute appointee for a time beyond that for which the regular and permanent incumbent is away on an authorized leave. Whenever such appointment shall continue for not more than thirty days, the appointing authority may appoint thereto any one whom he deems qualified. Substitute appointments made for a period exceeding thirty days shall be made in the same manner as provided in paragraph 24 for the filling of a vacancy by a regular and permanent appointment. Any person employed on a substitute basis shall, for the duration of the temporary employment, enjoy the class title and be entitled to receive the rate of pay for the class and position in which he is employed. The appointing authority shall notify the board within fifteen days following any substitute appointment made for a period to exceed thirty days, the name of the appointee, the class of position filled, the period for which the appointment was made and attach to the notification a signed copy of the leave of absence granted the employee for whom the appointee is substituting.

c. Emergency appointments of any person may be made at any time the need of the service require because of any local emergency of a temporary and special nature. No such appointment shall be effective or continued for more than ten days.

27. Leaves of Absence. The board shall adopt rules to provide for leaves of absence in the various classes of the classified service. Such rules shall provide for annual vacation and sick leaves with pay, and special leaves with or without pay. They may provide for special extended leaves with or without pay or with reduced pay for employees disabled through injury or illness arising out of their employment. The right to regulate the time at which any employee may take an annual leave, or any other leave which is not beyond the control of the employee, shall be vested at all times with the appointing authority.

28. Abolition of Positions in the Classified Service. Whenever the appointing authority abolishes a position in the classified service and there is no position vacant in the respective class to which the regular employee of the abolished position may be transferred, the employee shall be transferred to any position of the same class which may be held by a provisional employee. If there is no such position he shall be transferred to another position in the respective class, and the holder of that position shall thereupon be demoted in the order provided by paragraph 18.

29. Lay-offs. If, for any reason, the lowest class in the classified service, or the lowest class in a respective group of classes, as grouped by the classification plan, should become overburdened with the number of persons holding positions therein, and a reduction of personnel becomes necessary, the reduction shall be made only by laying off persons without pay. The order of removal shall begin with the person youngest in point of his accumulated total service in the departmental service and shall continue upward until all persons to be removed have been laid off. Lay-offs shall be made from positions only within the classes above set forth. The names of persons laid off, the date, the class of position held, and the order in which each person was laid off shall be reported to the board by the appointing authority. The board shall, thereupon, enter such information upon the reemployment list applicable for the class from which each person was removed.

30. Corrective and Disciplinary Action for Maintaining Standards of Service. a. The tenure of persons who have been regularly and permanently inducted into positions of the classified service shall be during good behavior. However, the appointing authority may remove any employee from the service, or take such disciplinary action as the circumstances warrant in the manner provided below for any one of the following reasons:

(1) Unwillingness or failure to perform the duties of his position in a satisfactory manner.

(2) The deliberate omission of any act that it was his duty to perform.

(3) The commission or omission of any act to the prejudice of the departmental service or contrary to the public interest or policy.

(4) Insubordination.

(5) Conduct of a discourteous or wantonly offensive nature toward the public; any municipal officer or employee; and, any dishonest, disgraceful, or immoral conduct.

(6) Drinking vinous or spirituous liquors while on duty or reporting for duty while under the influence of liquor.

(7) The use of intoxicating liquors, or habit forming drug, liquid, or preparation to an extent which precludes the employee from performing the duties of his position in a safe or satisfactory manner.

(8) The conviction of a felony.

(9) Falsely making a statement of any material fact in his application for admission to any test for securing eligibility or appointment to any position in the classified service, or, practicing or attempting to practice fraud or deception in any test.

(10) Using or promising to use his influence or official authority to secure any appointment to a position within the classified service as a reward or return for partisan or political services.

(11) Soliciting or receiving any money or valuable thing from any person for any political party or political purpose.

(12) Inducing or attempting to induce by threats of coercion, any person holding a position in the classified service to resign his position, take a leave of absence from his duties, or waive any of his rights under the provisions of this Section, or of the rules.

(13) The development of any defect of physical condition which precludes the employee from properly performing the duties of his position, or the development of any physical condition that may endanger the health or lives of fellow employees.

(14) The willful violation of any provision of this Section or of any rule, regulation, or order hereunder.

(15) Any other act or failure to act which the board deems sufficient to show the offender to be an unsuitable or unfit person to be employed in the respective service.

b. Unless the cause or condition justifies an employee being permanently removed from the service, disciplinary action may extend to suspension without pay for a period not exceeding the aggregate of ninety days in any period of twelve consecutive months, reduction in pay to the rate prevailing for the next lower class, reduction or demotion to a position of any lower class and to the rate of pay prevailing therefor, or such other less drastic action that may be appropriate under the circumstances. Nothing contained herein shall prevent any employee who is physically unable to perform the duties of his position from exercising his rights of voluntary retirement under any applicable law.

c. Although it is incumbent upon the appointing authority to initiate corrective or disciplinary action, the board may, and shall upon the written request of any qualified elector of the state which sets out the reasons therefor, make an investigation of the conduct and performance of any employee in the classified service and, thereupon may render such judgment and order action to be taken by the appointing authority. Such action shall be forthwith taken by the appointing authority.

d. In every case of corrective or disciplinary action taken against a regular employee of the classified service, the appointing authority shall furnish the employee and the board a statement in writing of the action and the complete reasons therefor.

31. Repealed by Acts 1983, No. 473, §2.

32. Oath, Testimony, Production of Records; Refusal to Testify. The board, and each of its members, shall have the same power and authority to administer oaths, subpoena witnesses, and compel the production of books and papers pertinent to any investigation or hearing authorized by this Section as is possessed by the district courts of Louisiana. Any person who (1) fails to appear in response to a subpoena, (2) fails to answer any question, except those which may incriminate him, (3) fails to produce any books or papers pertinent to any investigation or hearing, or (4) knowingly gives false testimony therein shall be subject to the penal Sections of this Section. In case of contumacy or refusal to obey a subpoena issued to any person, the district court within the jurisdiction of which the investigation is being carried on, or within the jurisdiction of which the person guilty of contumacy or refusal to obey is found, or resides, or transacts business, upon application of the board, shall have the requisite jurisdiction to issue to the person an order requiring him to appear before the board, its member or agent, and to produce the required evidence or give testimony touching the matter under consideration or in question. Any person failing to obey such order may be punished by the court for contempt.

Any officer or employee in the classified service who wilfully refuses or fails to appear before any court, officer, board, body or person properly authorized to conduct any hearing or inquiry, or any employee or officer, who, having appeared, refuses to testify or answer any relevant question relating to the affairs of government of the municipality or the conduct of any municipal officer or employee, except upon the ground that his testimony or answers would incriminate him, shall, in addition to any other penalty to which he may be subject, forfeit his position, and shall not be eligible for appointment to any position in the classified service for a period of six years.

33. Duties of Municipal Officers and Employees. The appointing authority shall report to the board within fifteen days following any appointment or employment in a position in the classified service, unless otherwise provided, the name of the appointee, the title and character of his office or employment and the date the employee commenced work in the position. The appointing authority shall also report the date of and official action in, or knowledge of, any separation, promotion, demotion, suspension, lay-off, reinstatement, or reemployment in the classified section.

34. Political Activities Prohibited. a. Political activities by and extending to employees of the classified service are hereby prohibited as follows:

(1) No person shall seek or attempt to use any political endorsement in connection with any appointment to a position in the classified service.

(2) No person shall use or promise to use, directly or indirectly, any official authority or influence, whether possessed or anticipated, to secure or attempt to secure for any person an appointment or advantage in appointment to a position in the classified service, or an increase in pay or other advantage in employment in any such position, for the purpose of influencing the vote or political action of any person, or for any consideration.

(3) No employee in the classified service shall, directly or indirectly, pay, or promise to pay, any assessment, subscription, or contribution for any political organization or purpose, or solicit or take part in soliciting any such assessment, subscription, or contribution. No person shall solicit any such assessment, subscription, or contribution of any employee in classified service. The prohibitions of this Subsection shall not be construed as applying to membership dues paid, or contributions made, to non-political employee organizations, pension funds, civic enterprises, the Louisiana Civil Service League or any similar non-political and non-partisan organization.

(4) No employee in the classified service shall (a) be a member of any national, state, or local committee of a political party, (b) be an officer or member of a committee of any factional, political club or organization, (c) be a candidate for nomination or election to public office, (d) make any political speech or public political statement in behalf of any candidate seeking to be elected to public office, or (e) take any part in the management or affairs of any political party or in the political campaign of any candidate for public office, except to privately express his opinion and to cast his vote.

(5) No person elected to public office shall, while serving in the elective office, be appointed to or hold any position in the classified service.

(6) No appointing authority, or agent or deputy thereof, shall directly or indirectly, demote, suspend, discharge, or otherwise discipline, or threaten to demote, suspend, discharge or otherwise discipline, or discriminate against any person in the classified service for the purpose of influencing his vote, support, or other political activity in any election or primary election. No appointing authority, or agent, or deputy thereof, shall use his official authority or influence, by threats, promises or other means, directly or indirectly, to coerce the political action of any employee in the classified service.

b. The appointing authority shall conduct an investigation of any person alleged to have violated a provision of this Paragraph, unless a request by the appointing authority is made to the board to conduct such an investigation. If as a result of such investigation the employee is determined to be guilty of violating one or more provisions of this Paragraph, he shall be suspended for thirty work days without pay for a first violation and discharged for a second violation. However, any employee found to have violated R.S. 33:2504(A)(4)(c) shall be terminated upon the determination of such a violation. The board may, upon its own initiative or upon the request of the appointing authority, investigate any officer or employee in the classified service whom it reasonably believes guilty of violating any one or more of the provisions. Any citizen, taxpayer, municipal officer, or employee may file with the board detailed charges in writing against any employee in the classified service for violating any provision of this Paragraph. The board shall, within thirty days after receiving the written charges, hold a public hearing and investigation and determine whether such charges are true and correct. If the board finds, upon its investigation, that an employee has violated any provision of this Paragraph, the board shall order the appointing authority to suspend the employee without pay for thirty work days for a first violation and mandate educational training on prohibited political activities. If the board determines an employee has violated any provision of this Paragraph for a second time, the board shall order the discharge of the employee from the service, and the appointing authority shall discharge the employee.

c. Whoever is found to have violated a provision of this Paragraph twice shall be subject to the penalties provided in R.S. 33:2507. In addition any employee in the classified service who is discharged because of violating a provision of this Paragraph shall not again be eligible for employment or public office in the classified service for a period of six years from the time of his discharge.

35. Other Prohibited Acts. No person shall

(1) Make any false statement, certificate, mark, rating, or report with regard to any test, certification, or appointment made under any provisions of this Section or commit or attempt to commit any fraud preventing the impartial execution of this Section and the rules.

(2) Directly or indirectly, give, render, pay, offer, solicit, or accept any money, service, or other valuable consideration for or on account of any appointment, proposed appointment, promotion, or proposed promotion to, or any advantage in, a position in the classified service.

(3) Defeat, deceive, or obstruct any person in his right to examination, eligibility, certification, or appointment under this Section, or furnish to any person any special or secret information for the purpose of affecting the rights or prospects of any person with respect to employment in the classified service.

36. Legal Services. If this Section, or its enforcement by the board is called into question in any judicial proceeding, or if any person fails or refuses to comply with the lawful orders or directions of the board, the board may call upon the attorney general, or the chief legal officer of the municipality, or may employ independent counsel to represent it in sustaining this Section and enforcing it. Nothing contained herein shall prevent any municipal officer, employee, or private citizen from taking legal action in the courts to enforce the provisions of this Section or of any rule, order, or other lawful action of the board.

37. Penalties. Whoever wilfully violates any provision of this Section or of the rules shall be fined not more than five hundred dollars and shall, for a period of six years, be ineligible for appointment to or employment in any position of the classified service. If he is an officer or employee of the classified service he shall forfeit his office or position.

38. Effect of Other Laws. This Section shall not be rendered ineffective by any general law affecting municipal employees or municipal departments in matters of classified civil service except that the applicability of this section shall be subject to and governed by the provisions of Section 15(W) and (U) of Article XIV of the Constitution, provided, however, that any city and any Parish government jointly with one or more cities under a plan of government, having once elected to accept the provisions of Section 15 of Article XIV of the Constitution may subsequently elect and determine to accept the provisions of this Section 15.1 by a majority vote of its qualified electors voting at a general or special election, ordered and held for this purpose by the City or Parish authorities, as the case may be, in the manner set forth in Section 15(W) of Article XIV of the Constitution, provided further, that no local election or elections pursuant to Section 15(W) and (U), insofar as they apply to and affect this Section, and no local election or elections pursuant to this Section 15.1 shall be held more often than once every four (4) years, in any one city.

39. Provisions Self-operative. The provisions hereof are self-executing and self-operative and the officials designated are authorized to carry the same into effect.

Added by Acts 1952, No. 302, adopted Nov. 4, 1952. Acts 1983, No. 473, §2; Acts 1989, No. 692, §1; Acts 1989, No. 799, §1; Acts 1997, No. 517, §1, eff. July 3, 1997; Acts 1997, No. 1326, §1, eff. July 15, 1997; Acts 1997, No. 1391, §1, eff. July 15, 1997; Acts 1999, No. 456, §1; Acts 1999, No. 1092, §1; Acts 1999, No. 1093, §1; Acts 2001, No. 980, §1; Acts 2004, No. 429, §1, eff. July 1, 2004; Acts 2006, No. 212, §1, eff. July 1, 2006; Acts 2006, No. 493, §1, eff. July 1, 2006; Acts 2013, No. 313, §§1, 3; Acts 2014, No. 791, §1; Acts 2016, No. 332, §1; Acts 2019, No. 275, §1, eff. June 11, 2019; Acts 2022, No. 322, §1; Acts 2022, No. 398, §1.

[1]as in enrolled bill.

CA 14 24

Repealed by Acts 2011, No. 248, §1

§24. Repealed by Acts 2011, No. 248, §1.

CA 14 24.2

Repealed by Acts 2011, No. 248, §1

§24.2. Repealed by Acts 2011, No. 248, §1.

CA 14 24.3

Repealed by Acts 2011, No. 248, §1

§24.3. Repealed by Acts 2011, No. 248, §1.

CA 14 24.4

Repealed by Acts 2011, No. 248, §1

§24.4. Repealed by Acts 2011, No. 248, §1.

CA 14 24.5

Repealed by Acts 2011, No. 248, §1

§24.5. Repealed by Acts 2011, No. 248, §1.

CA 14 24.6

Repealed by Acts 2011, No. 248, §1

§24.6. Repealed by Acts 2011, No. 248, §1.

CA 14 24.7

Repealed by Acts 2011, No. 248, §1

§24.7. Repealed by Acts 2011, No. 248, §1.

CA 14 24.8

Repealed by Acts 2011, No. 248, §1

§24.8. Repealed by Acts 2011, No. 248, §1.

CA 14 24.9

Repealed by Acts 2011, No. 248, §1

§24.9. Repealed by Acts 2011, No. 248, §1.

CA 14 24.10

New Orleans; board of liquidation of city debt; membership and powers

§24.10. New Orleans; board of liquidation of city debt; membership and powers

Be it further enacted, etc., that the Board of Liquidation, City Debt, established by Act No. 133, of the Acts of 1880, as now constituted, is hereby created a body corporate, with right of existence and succession as provided by law, with power to sue and be sued, to have a corporate seal, to make reasonable rules and regulations for the conduct of its business, and to employ counsel and a reasonable clerical force. None of its members shall receive any compensation for his services. The syndicate members of the Board of Liquidation, City Debt, and its ex officio members, the mayor of the city of New Orleans and Councilmen at large shall not be individually liable for any act or omission resulting in damage or injury, arising out of the exercise of their judgment in the formation and implementation of policy or arising out of the direction or management of the affairs of the Board of Liquidation, City Debt, in good faith and within the scope of their official functions and duties, unless such damage or injury was caused by the willful or wanton misconduct of such members. One of its members shall be elected president, and another vice-president, who shall act in the absence or disability of the president. They shall select a secretary (not a member of the board), who shall give bond for the faithful performance of his duties in the sum of twenty thousand dollars, and this bond shall be renewed every three years. He shall receive a salary to be fixed by the board and shall serve at the pleasure of the board. Their funds shall be deposited with the fiscal agent of the city of New Orleans, or with some chartered bank in the city of New Orleans selected by the board. The city of New Orleans shall provide, in the city hall or elsewhere, proper offices and quarters for said board and its officers, books, records, and archives. The clerical office expenses, counsel fees, and the cost of printing and engraving bonds under this Act shall be paid from said tax fund. On the first of January and July of each year, said board shall make, in printed form, to the city council, a detailed report of all its receipts and all its expenditures, and of its transactions and doings under the provisions of this Act, with the names of all its employees, and the amount of compensation paid to each. Nothing in this Act contained shall be construed to affect or change in any manner the duties, powers, and functions of the Board of Liquidation, City Debt, under existing laws, not inconsistent with this Act, or the rights of said board to the assets and property of the city not dedicated to public use, including the uncollected taxes prior to 1879; but said duties, functions, rights, and powers are maintained and confirmed in full force.

Added by Acts 1927, Ex.Sess., No. 3, §9, adopted April 17, 1928. Amended by Acts 1979, No. 307, §1, eff. July 10, 1979; Acts 1988, No. 308, §1, eff. July 7, 1988; Acts 1988, No. 407, §1, eff. July 10, 1988.

CA 14 24.11

Repealed by Acts 2011, No. 248, §1

§24.11. Repealed by Acts 2011, No. 248, §1.

CA 14 24.12

Repealed by Acts 2011, No. 248, §1

§24.12. Repealed by Acts 2011, No. 248, §1.

CA 14 24.13

Repealed by Acts 2011, No. 248, §1

§24.13. Repealed by Acts 2011, No. 248, §1.

CA 14 24.14

Repealed by Acts 2011, No. 248, §1

§24.14. Repealed by Acts 2011, No. 248, §1.

CA 14 24.15

Repealed by Acts 2011, No. 248, §1

§24.15. Repealed by Acts 2011, No. 248, §1.

CA 14 24.16

Repealed by Acts 2011, No. 248, §1

§24.16. Repealed by Acts 2011, No. 248, §1.

CA 14 24.17

Repealed by Acts 2011, No. 248, §1

§24.17. Repealed by Acts 2011, No. 248, §1.

CA 14 24.18

Repealed by Acts 2011, No. 248, §1

§24.18. Repealed by Acts 2011, No. 248, §1.

CA 14 24.19

Repealed by Acts 2011, No. 248, §1

§24.19. Repealed by Acts 2011, No. 248, §1.

CA 14 24.20

Repealed by Acts 2011, No. 248, §1

§24.20. Repealed by Acts 2011, No. 248, §1.

CA 14 24.21

Repealed by Acts 2011, No. 248, §1

§24.21. Repealed by Acts 2011, No. 248, §1.

CA 14 24.22

Repealed by Acts 2011, No. 248, §1

§24.22. Repealed by Acts 2011, No. 248, §1.

CA 14 24.23

Repealed by Acts 2011, No. 248, §1

§24.23. Repealed by Acts 2011, No. 248, §1.

CA 14 25

New Orleans; special tax for fire and police departments

§25. New Orleans; special tax for fire and police departments

Section 25. In addition to such other taxes as the City of New Orleans is now, or may be hereafter, authorized to levy, said City shall levy annually a special tax, not exceeding three mills on the dollar, on all taxable property in said City, as assessed and valued for city taxation purposes. The avails of said special tax are hereby dedicated to the maintenance of a double platoon system in the Fire Department and a triple platoon system in the Police Department of said City, and for an increase in the pay of the officers and men in said departments, respectively, and shall be used by said City exclusively for said purposes, respectively, according to such apportionment as said City may make from time to time; provided, however, that one-half the avails of said tax in excess of two mills shall be used exclusively for the purpose of an increase in the pay of officers and men in the Fire Department of said City, while the other half shall be used exclusively for the purpose of an increase in the pay of officers and men in the Police Department of said City.

(Amended by Acts 1928, No. 260, adopted Nov. 6, 1928.)

CA 14 25.1

New Orleans; special tax for general municipal purposes

§25.1. New Orleans; special tax for general municipal purposes

Section 25.1. In addition to any other taxes which the City of New Orleans is now or may hereafter be authorized to levy, said city may levy annually, beginning with the year 1963, a special tax in the amount of one-half (1/2) of one mill on the dollar, on all taxable property in said city which is assessed and valued for city taxation purposes. The avails of such tax shall be paid into the general fund of the city to be used for general municipal purposes.

(Added by Acts 1962, No. 515, adopted Nov. 6, 1962.)

CA 14 31.3

New Orleans; railroad passenger stations

§31.3. New Orleans; railroad passenger stations

General authorizations. The City of New Orleans, acting through the Public Belt Railroad Commission, shall have the power, in any manner it may determine, to acquire, construct, maintain and operate one or more railroad passenger stations, with all approaches thereto and appurtenances thereof, and shall also have the power to acquire, by purchase, lease, contract, expropriation or otherwise, all such lands, tracks and other property, real or personal, or rights of use or possession thereof, as it may deem necessary or desirable for the construction, maintenance and operation of said railroad passenger station or stations; provided, however, that in the maintenance and operation of said passenger station or stations and the other property referred to in this Section, no funds of the City of New Orleans or of said Commission, except funds derived from the revenues produced by said operation, shall be expended. The powers herein granted may be exercised anywhere in the Parish of Orleans or in any parish adjacent thereto. In connection with any project for building any such passenger station or stations, the City of New Orleans, through said Commission, shall have the power to do everything it deems necessary or desirable for the purpose of minimizing interference, caused by railroad traffic of any sort, with the use of streets, thoroughfares and roads, and with the proper development of the City of New Orleans, and for that purpose may include in the property acquired or constructed hereunder, or the right of use or possession of which is acquired hereunder, any and all depots, freight terminals, classification yards, tracks and other railroad facilities; provided, however, that for the exclusive purpose of minimizing interference caused by railroad traffic of any sort with the use of streets, thoroughfares and roads, or with the proper development of the City of New Orleans, the power of expropriation shall not be exercised to acquire any existing freight depot, freight terminal, freight classification yard, track or other railroad facility. The Commission Council of the City of New Orleans, on such terms and conditions as it may prescribe, may dedicate to the use of any project hereunder any streets, thoroughfares, roads or other property belonging to or under the control of the City of New Orleans; and the Police Jury of any adjacent parish, on such terms and conditions as it may prescribe, may dedicate to the use of such project any streets, thoroughfares, roads, or other property belonging to said parish or under the control of said Police Jury.

The operation of any passenger station or stations herein authorized may include operating, or granting leases or concessions for the operation of, any restaurant, store or other enterprise of any sort associated with a railroad passenger station.

The City of New Orleans, through the Public Belt Railroad Commission, shall have the power at any time to rebuild, reconstruct, to improve and to enlarge any constructed property therefore acquired, pursuant hereto.

The City of New Orleans, through the Public Belt Railroad Commission, shall have the power to make a loan or loans to any railroad company or railroad companies to be used by said railroad company or railroad companies for defraying the expenses of any improvement in the Parish of Orleans, or in any parish adjacent thereto, to any tracks, depots, freight terminals, classification yards or other facilities of such railroad company or railroad

companies; provided, however, that no funds of the City of New Orleans or of said Commission shall be so loaned except funds obtained from the source enumerated in Subsection (B) hereof. The obligation of any railroad company or railroad companies to repay any such loan may be pledged under any mortgage referred to in said Subsection (B) hereof, and the interest paid on any such loan shall be deemed part of the revenues referred to in this Section 31.3.

(A). Contracts. The City of New Orleans, through the Public Belt Railroad Commission, shall have the authority to enter into a contract or contracts, containing such terms, conditions, stipulations and provisions, and for such duration, as may be approved by the vote of a majority of all the members of said Commission, with any railroad company or railroad companies entering or hereafter entering New Orleans, for the use by such railroad company or railroad companies of said passenger station or stations, and the approaches thereto and appurtenances thereof, and/or of any tracks or other property, constructed pursuant to Section 31.3 hereof, or the ownership or right of use or possession of, which is acquired or dedicated pursuant to Section 31.3 hereof, for or in connection with the transporting, conveying or other handling, under the motive power of such railroad company or railroad companies, of the locomotives, cars, trains and other equipment of such railroad company or railroad companies, and passengers therein and freight and other contents thereof. Said passenger station or stations and all property and rights of use or possession of property acquired, constructed or dedicated pursuant to Section 31.3 hereof, shall be under the control and management of the Public Belt Railroad Commission, but any contract entered into pursuant to this Subsection (A) or resolution adopted by said Commission by a vote of a majority of all the members thereof, may vest in a Committee or other body composed of representatives of any and all interested parties, including but not limited to representatives of any railroad company or railroad companies, constituted as provided in such contract or resolution, such powers as may be specified in such contract or resolution for supervising or controlling the acquisition, construction, maintenance and operation of said passenger station or stations, the approaches thereto and appurtenances thereof, and any tracks or other property referred to in Section 31.3 hereof. Any such contract may be made superior to the lien of any mortgage executed to secure any bond issued hereunder. Any right of use granted pursuant to this Subsection (A) to any railroad company or railroad companies by the City of New Orleans, through the Public Belt Railroad Commission, shall be exempt from every form of taxation.

Without restricting any power or discretion herein conferred upon the City of New Orleans, acting either through its Commission Council or the Public Belt Railroad Commission, it is hereby declared to be the policy of this amendment that the railroad passenger station or stations or other railroad facilities acquired or constructed by the City of New Orleans pursuant hereto, shall not be operated at a profit to the City of New Orleans or the Public Belt Railroad Commission, it being understood that the City of New Orleans and the Public Belt Railroad Commission shall not be deprived of any element of cost paid by them or either of them with proper interest on all amounts expended or advanced, and it being understood, further, that after all costs with interest have been reimbursed (but in no event sooner than 1988), the City of New Orleans shall receive, in addition to all costs of maintenance and operation, a net rental in an amount equal to what the taxes would be on the

stations or facilities furnished by it, based on their then fair value if the same were not tax exempt.

(B). Bond issue. For the purpose of acquiring or constructing said railroad passenger station or stations, with all approaches thereto and appurtenances thereof, and any land, tracks and other property, real or personal, or rights of use or possession thereof, referred to in Section 31.3 hereof, and of improving and enlarging any property theretofore acquired or constructed pursuant hereto, and of complying with any obligation contained in any contract which may be executed pursuant to Subsection (A) hereof, the City of New Orleans, through its Commission Council, is hereby granted power to issue by resolution, upon the recommendation of the Public Belt Railroad Commission, its bonds not to exceed Fifteen Million Dollars ($15,000,000) in aggregate principal amount, in such forms, numbers and amounts, at such times and prices, and upon such terms and conditions as to maturities, rates and payment of interest, and final redemption (which shall not be later than fifty years after their date), and otherwise, as the City of New Orleans may deem advisable, subject to the following limitations and provisions:

(a) All such bonds shall be secured solely and only by mortgage of such railroad passenger station or stations, the approaches thereto and appurtenances thereof, and any lands, tracks and other property, real or personal, or rights of use or possession thereof, acquired, constructed or dedicated pursuant to Section 31.3 hereof, and by pledge of the net revenues derived from the operation of such property and by pledge and assignment of any contract or contracts executed pursuant to Subsection (A) hereof, and shall be paid therefrom and not by any tax or assessment or levy upon any taxable property in the City of New Orleans, nor out of any other funds, revenues or things of value of said City; provided that during the period of acquisition and construction of said passenger station or stations and other property, and during the period, if any, after acquisition and construction while the net revenues from the operation shall not be sufficient to provide for the interest or sinking fund or maturing installments of principal of any and all outstanding bonds hereinabove authorized to be issued, the same may be paid out of the proceeds from the sale of any bonds authorized by this Subsection (B); and provided, further, that if more than one such passenger station is constructed or acquired, there may be separate mortgages, securing separate issues of bonds, each covering only part of the property referred to in this Subsection (B). In the event of any foreclosure of any such mortgage, the purchaser at foreclosure sale, and his successors and assigns, shall have a franchise for the use and operation of said passenger station or stations and all other property mortgaged thereby, subject to any contract or contracts which may be made superior to the lien of the mortgage foreclosed upon, until the latest date of maturity specified in any bond secured thereby at any time theretofore outstanding, at the end of which period title thereto shall revert to the City of New Orleans. Said mortgage or mortgages shall contain such stipulations, terms, provisions and conditions, not inconsistent herewith, as the City of New Orleans, upon the recommendation of the Public Belt Railroad Commission, may determine.

(b) Said passenger station or stations, the approaches thereto and appurtenances thereof, and all other property and right of use or possession of property acquired, constructed or dedicated pursuant to Section 31.3 hereof, which shall be owned by the City of New Orleans, shall be exempt from every form of taxation, and shall in no manner be

hypothecated, leased or alienated by the City of New Orleans, except as herein set forth; provided, however, that any real or personal property acquired pursuant to Section 31.3 hereof not needed for the construction or operation of any facility referred to in Section 31.3 hereof may, by the Commission Council of the City of New Orleans, be leased or sold or dedicated to public purposes of the City of New Orleans. The proceeds of any such lease or sale shall be applied to the payment of the obligations issued hereunder.

(c) The bonds issued hereunder and the income therefrom shall be exempt from all taxation for State, parish, municipal or other local purposes.

(d) All bonds issued hereunder shall have, and are hereby declared to have, the qualities of negotiable instruments under the Law Merchant.

(e) The provisions hereof shall constitute a contract between the holders of any bonds issued hereunder and the State of Louisiana and City of New Orleans.

(C). Federal aid. In connection with any project authorized hereby, the City of New Orleans may accept and utilize any grant, loan or financial or other assistance of any board, body or other agency of the United States, or of any other board, body or other agency.

(D). Grade crossing elimination. Any project hereunder may include such provisions as may be agreed to by the City of New Orleans, through the Public Belt Railroad Commission, or determined by the City of New Orleans, through its Commission Council, for eliminating grade crossings of any tracks used or to be used for reaching the aforesaid passenger station or stations or any other railroad tracks. All or any part of the cost of eliminating grade crossings of any tracks, to the extent agreed to by the City of New Orleans, through the Public Belt Railroad Commission, or determined by the City of New Orleans, through its Commission Council, may be defrayed by the issue of bonds pursuant to Subsection (B) hereof; but the City of New Orleans is hereby empowered to contribute any funds towards such cost to such extent as its Commission Council may determine; provided no railroad company shall be required to pay rent or interest on any facility constructed or acquired for the sole use of any other railroad company. The elimination of grade crossings of railroad tracks is hereby declared to be a permanent public improvement within the meaning of Act 341 of 1936, and, in order for the City of New Orleans to obtain funds for any contribution by it referred to in Subsection (D), bonds may be issued under said Act, or under Section 4 of Act 4 of 1916, subject to compliance with the requirements of said respective Acts, but no bonds of the City of New Orleans shall be issued under either of said Acts, or otherwise except as provided in Subsection (B) hereof, to defray any other cost of any project herein authorized.

(E). Rights of public belt railroad system. The Public Belt Railroad System shall have no right except through contract, to use in its switching operations any track, depot, terminal, yard or other facility acquired or constructed, or the right to use which is acquired, pursuant to Section 31.3 hereof; provided, however, the Public Belt Railroad Commission shall not be deprived of any of its existing powers of authority by this provision. If the Public Belt Railroad System by contract uses in its switching operations any track or other facility hereinabove in this Subsection (E) referred to, the fair value of such use, as agreed to by the Public Belt Railroad Commission, shall be deemed part of the revenues referred to in Section 31.3 hereof, and may be made applicable to the payment of any bond issued hereunder, and pledged under any mortgage hereinabove referred to.

(F). Control of public belt railroad system. Except as and to the extent and with the limitations provided in Section 28 of this Article XIV, no right or privilege shall be granted to any railroad company to control, use or operate the Public Belt Railroad System, or any part thereof, as now existing, or as extended by the use of its own funds or the proceeds of any bonds hereafter issued pursuant to Section 27 of said Article XIV.

(G). Use of stations. The City of New Orleans, through its Commission Council, is hereby vested with full power and authority to compel, if deemed by it necessary or desirable to promote the public safety or welfare, any railroad company or railroad companies entering or hereafter entering the City of New Orleans to use any passenger station or stations and/or any other property referred to in Section 31.3 hereof, on such reasonable terms and conditions as said Commission Council may prescribe, and in that connection, to compel any such railroad company or railroad companies to re-locate and rearrange its or their tracks, yards and other facilities to such extent as may be necessary; it being the intent hereof to vest in the City of New Orleans, through its Commission Council, all power and authority in this regard which might be exercised by or under the authority of the State of Louisiana; provided, however, that the power and authority granted in this Subsection (G) shall be subject to such approval of the Interstate Commerce Commission or other Federal authority as may be necessary.

(H). Effect on other powers. Nothing herein contained shall be deemed to repeal, limit, modify or affect any police power or other power of the City of New Orleans, through its Commission Council, or the Public Belt Railroad Commission, or otherwise.

(I). Amendments. Any prohibition herein contained may at any time hereafter, by further amendment of this Constitution, be removed, modified or relaxed, except to the extent that such action shall impair any obligation under any bond theretofore issued pursuant hereto or under any contract theretofore entered into pursuant hereto.

(J). Self-operative. This amendment shall be self-operative.

(Added by Acts 1938, No. 385, adopted Nov. 8, 1938.)

CA 14 31.7

Repealed by Acts 2011, No. 248, §1

§31.7. Repealed by Acts 2011, No. 248, §1.

CA 14 32

Caddo Parish; sale of jail site; proceeds

§32. Caddo Parish; sale of jail site; proceeds

Section 32. (a) Authority is hereby conferred upon the Police Jury of Caddo Parish, Louisiana, to sell the jail site and improvements thereon, at the corner of Milam and McNeil Streets, in the City of Shreveport, Louisiana, for the price and upon such terms as said Police Jury shall fix and which shall be the most advantageous to the Parish as it is practicable to secure; and said Police Jury is further authorized to cause the necessary act of transfer evidencing the sale, whether for cash or on terms, to be duly executed and signed.

(b)-(f) Repealed by Acts 2010, No. 137, §1.

(Added by Acts 1938, No. 394, adopted Nov. 8, 1938; Acts 2010, No. 137, §1.)

CA 14 33

Industrial plant erection; agricultural industrial boards

§33. Industrial plant erection; agricultural industrial boards

Section 33. In order to provide funds for the erection and maintenance of industrial plants for the conversion or processing of raw farm or agricultural products, the Police Jury of any Parish may, as the governing authority of the Parish or any Police Jury Ward thereof, when authorized by a majority vote of the property taxpayers of the entire Parish or any Police Jury Ward, who are qualified to vote under the Constitution and laws of this State, incur debt and issue negotiable bonds for the payment thereof.

Bonds issued under this Section shall not exceed Three Hundred Thousand ($300,000) Dollars in amount, nor shall any tax levied hereunder exceed four mills on the dollar of assessed property for any one year. This four mill limitation, however, shall be in excess of all other limitations on the amount of Parish or Ward tax levied.

The election referred to hereinabove, and, except as herein otherwise provided, the issuance of bonds as herein authorized, shall be as nearly as possible in accordance with the provisions of Act 46 of the Extra Session of 1921 and Acts amendatory thereto.

Whenever an election provided for herein shall have carried, the Police Jury shall create an Agricultural Industrial Board consisting of five members, to be appointed by the Police Jury for a period of four years. The members, when so appointed, shall continue to serve until their successors are appointed. There shall be no prohibition against the County Agent of any Parish or Ward serving as a member of a Parish Agricultural Industrial Board or as Secretary for the same. The members of the Board shall receive no salary, but they shall be reimbursed for any expenses actually incurred by them in the performance of their duties under this Section.

The Board herein provided for shall be a body politic, with authority to sue under the name of "(Parish name) 'Parish Agricultural Industrial Board', or '(Parish name) Parish (Ward name) Ward Agricultural Industrial Board', as the case may be," and to be sued under its own name. A majority of the members of the Board shall constitute a quorum for the transaction of business. The Board shall have all the powers and authority necessary or incidental to the establishment and maintenance of the plants contemplated by this Section, including the power and authority to buy, sell or lease real property, but it shall not have the authority to operate such plants.

Whenever any plant contemplated by this Act shall have been established, the Parish or Ward Agricultural Board shall have the authority to lease such plant upon such terms as it deems most advantageous to the property taxpayers of the Parish. It shall, also, have the authority to sell any such plant with the approval of a two-thirds vote of the elected members of the Police Jury; provided, that no plant shall be sold for less than the total cost of its erection, including the cost of all real estate and improvements thereon, and expenses incurred in connection therewith, less a reasonable deduction for depreciation.

In the event of such sale, the amount received shall be applied to the retirement of the principal and interest of any outstanding bonds which were issued by the Parish or Ward for the purpose of establishing and maintaining the plant. Any surplus over and above the amount

of any such bonds or other expenses, shall be deposited in the Parish Treasury to the credit of the General Fund.

All revenues derived from the leasing of any plant established under this Section, shall be used for the maintenance and improvement thereof, and for other expenses incurred in connection therewith; and any surplus shall be deposited in a reserve fund for the retirement of any bonds issued hereunder.

Provided that no Police Jury shall exercise the authority herein granted with respect to the establishment and maintenance of any industrial conversion or processing plant when the exercise of such authority will result in competition between the Parish or Ward plant to be established and a plant which is already operating in the Parish.

All bonds issued under the provisions of this Section shall be exempt from taxation.

This amendment shall be self-operative.

(Added by Acts 1938, No. 392, adopted Nov. 8, 1938.)

CA 14 38

Jefferson Parish; public improvement districts

NOTE: Section 38 as proposed by Acts 1950, No. 565, adopted Nov. 7, 1950.

§38. Jefferson Parish; public improvement districts; levee systems, pumps, etc.; indebtedness; bonds

Section 38. Acting under the provisions of this article of the Constitution and Chapter 4 of Title 39 of the Louisiana Revised Statutes of 1950,[1] insofar as applicable thereto, the Public Improvement Districts organized in the Parish of Jefferson, State of Louisiana, under the provisions of Act No. ____ [2] of the Legislature of Louisiana for the year 1950, may, through their governing authorities, incur debt and issue bonds, secured by and payable from ad valorem taxation as prescribed under the constitutional limitations on all the property situated within the said districts sufficient in amount for the purpose of purchasing, acquiring, constructing and erecting levee systems, pumps, flood gates and appliances necessary therefor, and to fill lands and construct soil erosion works, title to which shall be in the public. Said Public Improvement Districts are hereby declared to be political subdivisions of the state and shall have and exercise such further powers as may be authorized by the legislature.

Added by Acts 1950, No. 565, adopted Nov. 7, 1950.

[1]R.S. 39:471 et seq.

[2] Acts 1950, No. 117, authorizing the creation of public improvement districts in Jefferson Parish, defining their powers, etc.

NOTE: Section 38 as proposed by Acts 1952, No. 529, adopted Nov. 4, 1952.

§38. Jefferson Parish; public improvement districts

Section 38. (A). Projects authorized. The Parish of Jefferson, acting by and through its governing authority, is authorized and empowered to create, alter and abolish Public Improvement Districts within said Parish in the manner provided by the Legislature under the provisions of Act 117 of 1950, as the same now exists or may hereafter be amended (which Act is hereby ratified and confirmed except as herein modified without affecting the right of the Legislature to amend said Act). Such Public Improvement Districts which include land fronting any body of water lying wholly or partially within said Parish, as now or hereafter created, in addition to the powers now conferred on such districts by law, shall have the power to construct and undertake reclamation projects as herein provided, to locate, relocate, construct, maintain, extend and improve levees, embankments, seawalls, jetties, breakwaters, water-basins, and other works in relation to such projects, and to conduct all dredging and filling operations necessary in connection therewith and incidental thereto, along, over and on the shores, bottom and bed of such waters within the Parish of Jefferson, at a distance from the present shore line, as the governing authority of said districts may determine, and along and on the shores adjacent to said waters; the said levees, embankments, seawalls, jetties, breakwaters, water-basins and other works to be of such character and extent and of such height, width, slope, design and material as said governing authority of such district may deem necessary and proper.

Said districts shall also have the power to construct, acquire, extend and improve water systems, sewer systems, garbage and waste disposal facilities, drains and drainage works, fire protection, road lighting facilities, boat harbors, marinas, stadiums, golf courses, boulevards, streets, roads, buildings and all other buildings and types of permanent improvement and construction necessary to render the property usable to the maximum extent.

The Parish Council for the Parish of Jefferson, State of Louisiana, or its successors in law, shall be the governing authority of any such Public Improvement District created under the provisions

of this Section and the said Act 117 of 1950.

Nothing herein contained shall add to or detract from the present provisions of the Constitution and Laws of the state relative to the Board of Commissioners of the Port of New Orleans, its rights under all of said provisions being preserved.

(B). Jurisdiction and powers. In planning, designing and executing said projects, the governing authority of said Districts in each case shall have jurisdiction, power and authority, within the territorial limits of its District to dedicate to public use and to lay out, construct, embellish and maintain a system of parks, beaches, tracts of land and streets, with the necessary and related buildings, and the usual adjuncts to the kind of development contemplated hereunder; to construct, equip and maintain playgrounds, places of amusement and entertainment, gymnasiums, swimming pools, bathing beaches, aviation fields and other like places.

(C). Contracts with public utilities. Such Districts may contract with any agency, public or private, providing public utilities within the Parish of Jefferson, on such terms as may be agreed upon between said Districts and said respective utilities, for the financing, construction and extension of sewerage, water, drainage, electric, gas and other necessary public utilities in, on and through said development.

(D). Property acquisition; expropriation; state property. Such Public Improvement Districts may acquire by donation, purchase, exchange or expropriation, and include in any development and improvements, any private property within three hundred feet of the present shore line of said waters situated within the respective district, which may be considered by the governing authority to be necessary to accomplish the purposes of the respective district. Said districts may acquire by expropriation any real property in fee, leaving the ownership of any minerals or mineral rights in private landowners, and the prescription of nonuse shall not run against said minerals or mineral rights. In the event of expropriation the compensation to be paid shall be the actual market value of the property as of the time of the taking thereof.

To enable the said districts to perform the work herein provided for and to assist in defraying the cost and expenses thereof, the State of Louisiana, acting by and through the Register of the State Land Office, is hereby authorized, empowered and directed to grant to districts now or hereafter created in accordance herewith, the title to all property owned by the State of Louisiana, or the title to which stands in the name of the State, and all property which, by its nature, situation and location, is not susceptible of private ownership under the present laws and Constitution of the State, and which land is to be reclaimed or filled in within any levee embankments, slopes, retaining walls, seawalls and breakwaters to be constructed hereunder; provided, however, that the mineral rights on any and all of said lands shall be reserved to the State of Louisiana. When any such district shall have been formed and notice of the creation thereof published one time in a newspaper published in the Parish, the vesting of the title in and to said lands shall be evidenced by a certificate of title and patent which shall be issued by the Register of the State Land Office. Upon receipt of a request from the governing authority of the district describing the lands to be reclaimed, it is hereby made the mandatory duty of said Register to issue a certificate of title and patent granting to the district title to the land described in the request.

No Levee District may expropriate (or appropriate) any property of such a Public Improvement District without paying full compensation therefor computed at the actual current market value of the property so acquired.

(E). Levee district rights. Nothing herein contained shall be construed to deprive the Pontchartrain Levee District and the Lafourche Basin Levee District of any rights or powers that such districts presently have or exert in connection with the present levee systems within the Parish of

Jefferson. Public Improvement Districts may enter into contracts with the said Levee Districts in connection with the doing of any act which each such district is empowered to perform.

(F). Reclamation, construction and improvement contracts. The work of reclamation, construction and improvement herein and heretofore authorized and provided for shall be accomplished by letting out contracts therefor from time to time in accordance with law at the time of the letting of said contracts.

(G). Land grants. Public Improvement Districts undertaking projects contemplated hereunder, and receiving title to property as herein provided, shall have complete jurisdiction, power and authority to sell and lease, or sell or lease, or otherwise dispose of such portion of the lands reclaimed and other property acquired for the purpose of said improvement (except the land herein required to be dedicated by it for public use) together with any building, improvements or other work constructed thereon, under such terms and conditions and by such methods as the governing authority may deem proper; and to establish and impose such servitudes, restrictions, rules and regulations as to such lands sold and leased, or otherwise disposed of, as said governing authority may determine; provided that said lands may be subdivided in lots and may be offered for sale or lease or sold or leased as soon as practicable after the adoption of this amendment without awaiting the completion of said projects as a whole; provided, that there shall be reserved and dedicated forever by said governing authority for public parks, parkways, boulevards, playgrounds, aviation fields, yacht harbors, beach purposes, and places of amusement, along the entire water frontage of the project, a continuous strip of land averaging at least 300 feet in depth and at no point less than 200 feet in depth; provided that when said Districts shall have established and located the front line of said development, including the line or location of piers, breakwaters, or other like extensions, and shall have sold or leased, or otherwise disposed of, any land or granted any rights based upon said line, or location, or when any party shall have for a valuable consideration, acquired rights based on said line or location, then no further reclamation shall be made, or other works constructed, by said District or each respective district as herein provided. However, beyond said established front line or location in the bed of said waters, the State of Louisiana shall not itself undertake, authorize or permit said Districts or any other governmental agency or person, association, firm or corporation whatsoever, to reclaim the bed of said waters, or any part thereof, or to construct any works thereon; provided, however, that the foregoing restrictions and limitations shall not prevent or preclude the State of Louisiana, or other governmental agency authorized by law, or any person, firm or corporation authorized by law, from building any bridges, or crossings connecting the shores of said waters with any land reclaimed or works constructed in said waters. For the sale and disposal of said property, such Districts shall employ such persons, agents or agencies, as said Districts' sound discretion may dictate; and shall pay said agents such compensation as shall have been previously agreed upon; provided, however, that in no case shall such compensation exceed the maximum tariff, or rate in force and established at the time by the New Orleans Real Estate Exchange or its successor and allowed for sales of privately owned property within the Parish of Jefferson.

(H). Bonds, notes, etc. In order to carry out the objects and purposes of this section and to enable said Districts to finance and carry on the work of development, improvement, maintenance and operation herein authorized, or otherwise authorized by law, said Districts are authorized and empowered, and shall have the authority and power, to issue, sell and deliver, from time to time, bonds, notes or certificates of indebtedness, not exceeding Thirty Million Dollars in aggregate principal amounts at one time outstanding, to be signed in its behalf by its duly authorized officers, to be payable in lawful money of the United States of America, to bear such rate of interest not to exceed six (6%) per cent per annum, to be payable at such times and at such place or places and to be issued under all such terms and conditions, not inconsistent herewith, as said Districts may determine; and to secure such bonds, notes and certificates of indebtedness, at any time issued, or to be issued and

outstanding, but not to exceed the sum of Thirty Million Dollars principal amount outstanding, the said Districts are authorized to mortgage and pledge:

(1) Any and all lands reclaimed or to be reclaimed, or otherwise acquired by said Districts as part of said development, except such part of said land as is required by the provisions hereof to be reserved and dedicated for public parks, parkways, boulevards, playgrounds or places of amusement, or beach purposes, together with all buildings or improvements made or constructed, or to be made or constructed thereon, and all rights, ways, privileges, servitudes or appurtenances, thereunto belonging, or in anywise appertaining, and

(2) Cash, notes, or other evidences or indebtedness received, or to be received, by said Districts in consideration for the sale or sales of any lands, lots, and improvements forming part of said development; and

(3) Any lease or leases and the rents, incomes and other advantages arising out of any lease or leases, made or granted by said Districts in connection with said development; and

(4) Generally any and all rights of said Districts and to any lands, property, incomes, revenues, claims and other choses in action, forming part of and arising out of said development.

Said Districts shall have the power and authority to sign, execute and deliver any act or acts of mortgage and pledge containing all such terms, conditions and stipulations, not inconsistent herewith, as they may deem proper to secure any bonds, notes or other certificates of indebtedness issued, or to be issued by it in pursuance hereof. The said bonds, notes or certificates of indebtedness shall be exempt from all taxation for state, parish and municipal purposes, and savings banks and insurance companies shall be authorized to invest funds in their hands therein, and said bonds, notes and certificates of indebtedness may be used for deposit with any officer, board, municipality or other political subdivision of the State of Louisiana, in any case whereby any present or future laws deposit of security may be required. Said bonds, notes and certificates of indebtedness, shall be deemed to be negotiable instruments and incontestable in the hands of bona fide holders for value; provided, however, nothing herein contained shall be construed as pledging the credit of the State of Louisiana for the payment of said bonds, notes or certificates of indebtedness, nor shall said bonds, notes or certificates of indebtedness be construed as obligations of the State of Louisiana.

(I). General provisions. In addition to the power and authority to issue bonds or other evidences of indebtedness and to borrow money as provided in Section 38 and Section 38(h), said Districts shall also have the authority to issue revenue bonds under the provisions of Article XIV, Section 14 of the Constitution of the State of Louisiana for the year 1921 and Sub-Parts B and C, Part I, Chapter 10, Title 33 of the Louisiana Revised Statutes of 1950, for any lawful purpose of the District, and in connection with the issuance of revenue bonds pursuant to said authority, any revenue producing property or facility or other structure owned by or to be acquired by such Districts is hereby declared to be a revenue producing public utility as that term is used and defined by the Constitution and Laws of the State with respect to the issuance of revenue bonds of political subdivisions of the State.

Refunding bonds may be issued for the purpose of refunding, extending and unifying the whole or any part of the principal, interest and redemption premiums on any outstanding bonds issued under Sub-Paragraphs (h) and (i) hereof, and the proceeds applied to or deposited in escrow for the retirement of the outstanding bonds or may be delivered in exchange for the outstanding bonds; provided, however, no bonds may be refunded hereunder unless the holders thereof voluntarily surrender them for exchange or payment or unless the bonds being refunded mature or are callable for prior redemption under the terms of their issuance within ten (10) years from the date of the issuance of the refunding bonds. When the proceeds of refunding bonds are deposited in escrow to pay and redeem the bonds refunded, any interest earned on the investment of such proceeds in direct

obligations of the United States of America may be calculated as a part of the funds required to pay and redeem the bonds refunded. No election shall be necessary to authorize the issuance of refunding bonds hereunder.

For a period of thirty (30) days from the date of publication of the proceedings of the governing authority of any District hereunder, authorizing the issuance of any bonds, notes or certificates of indebtedness, any person in interest shall have the right to contest the legality of such proceedings, the bonds, notes or certificates of indebtedness provided for, for any cause; after which time no one shall have any cause or right of action to contest the regularity, formality or legality of said proceedings or authorization for any cause whatsoever. If the validity of any proceedings or issue authorized or provided for, held under the provisions of this section, is not raised within thirty (30) days from the date of publication of the proceedings taken in connection therewith, the legality thereof shall be conclusively presumed, and no court shall have authority to inquire into such proceedings.

(J). Construction of section; self-executing provisions. Sections 38(a) to 38(j), inclusive, are intended to constitute sub-sections of Section 38. Section 38 and said sub-sections shall be construed as a unit and wherever the words "hereunder," "hereby," "herein" and the like are used in said section and sub-sections, they shall be construed to refer to the entire section and sub-sections as a unit. Said section and sub-sections are self-executing and no additional legislation other than the said Act 117 of the Legislature of 1950, which is hereby ratified and confirmed, except as modified herein, shall be required for effective use of said section and sub-sections; provided, however, nothing contained in said section of sub-sections shall be construed to prevent the use by any public improvement district of Jefferson Parish of any other available authority for its establishment, operation and the financing of its facilities. Except when a public improvement district subject hereto is acting pursuant to and in dependence on authority contained in such other law, no legislation or restriction contained in any other law shall be applicable to the operation of any public improvement district operating under this section and these sub-sections nor to the issuance of the obligations of any such district.

(Added by Acts 1952, No. 529, adopted Nov. 4, 1952. Amended by Acts 1964, No. 555, adopted Nov. 3, 1964; Acts 1966, No. 554, adopted Nov. 8, 1966.)

CA 14 38.1

St. Charles

§38.1. St. Charles Parish; reclamation projects by public improvement districts

Section 38.1.

NOTE: TEXT OF PARAGRAPH (A) AS AMENDED BY ACTS 1965, NO. 175, ADOPTED NOV. 8, 1966

(a). Public Improvement Districts now or hereafter created within the Parish of Saint Charles having a frontage of land on Lake Pontchartrain within said district, in addition to the powers now conferred on such districts by law, shall have the power to construct and undertake reclamation projects as herein provided, to locate, relocate, construct, maintain, extend and improve levees, embankments, seawalls, jetties, breakwaters, water-basins, and other works in relation to such projects, and to conduct all dredging operations necessary in connection therewith and incidental thereto, along, over and on the shores, bottom and bed of Lake Pontchartrain within the Parish of Saint Charles, at a distance extending inland three hundred feet from the present shore line and extending not more than one mile into Lake Pontchartrain; the said levees, embankments, seawalls, jetties, breakwaters, water-basins and other works to be of such character and extent and of such height, width, slope, design and material as said governing authority of such district may deem necessary and proper. The police jury for the parish of Saint Charles, state of Louisiana, shall be the governing authority of any such Public Improvement District created under the provisions of this Section.

NOTE: TEXT OF PARAGRAPH (A) AS AMENDED BY ACTS 1966, NO. 568, ADOPTED NOV. 8, 1966

(a-1). Public Improvement Districts may be created within the parish of Saint Charles, said district or districts to be limited to all or part of the area within Saint Charles Parish fronting on Lake Pontchartrain and extending one mile into the lake and extending landward to but not including the present location of the Illinois Central Railroad right of way, which right of way is situated on the north side of the United States Highway #61. The Police Jury for the parish of Saint Charles, state of Louisiana, shall be the governing authority of any such districts created under the provisions of this Section. No district shall be created until notice of intention to create such district shall be ordered by resolution of the Police Jury, in which notice there shall be set forth the boundaries of said district and said notice shall further state that the Police Jury will, in open session, on a date and at an hour and place named, proceed to create the proposed district. This notice shall be published once a week for two consecutive weeks, the first publication being not less than fifteen (15) days before the date fixed for the hearing, in a newspaper published in the Parish. At the place and time specified in the notice, the Police Jury shall hear all objections which may be interposed to the boundaries of the district and to the inclusion of the property proposed to be included in the district, and after disposing of all objections, the Police Jury shall, if it decides to create the district, adopt a resolution fixing the boundaries of the district and giving it a numerical designation and name.

(a-2). To accomplish the purpose hereinafter enumerated in this Section any Public Improvement District created as provided in this Section shall have the power to incur obligations and to levy taxes upon only the land included within such district under and in

accordance with the authority of Chapter 4, Title 39 of the Louisiana Revised Statutes of 1950 as amended. Any other provision to the contrary notwithstanding, such power to tax shall not extend to oil, gas or other minerals or mineral rights or to any equipment used for the exploration, production, storage, refining or transportation thereof, and all rights to property acquired hereunder to which the mineral rights are reserved to the state in paragraph d hereof shall be subordinate to the right of the state to lease, explore and develop such property for oil, gas and other minerals. Such districts shall also have the right to contract for legal, financial, engineering and other services which may be necessary or required to carry out the provisions of this Section.

(a-3). Public Improvement Districts hereafter created within the parish of St. Charles having a frontage of land on Lake Pontchartrain within said district, in addition to the powers now conferred on such districts by law, shall have the power to construct and undertake reclamation projects as herein provided, to locate, relocate, construct, maintain, extend and improve levees, embankments, seawalls, jetties, breakwaters, water-basins, and other works in relation to such projects, and to conduct all dredging operations necessary in connection therewith and incidental thereto, along, over and on the shores, bottom and bed of Lake Pontchartrain within the parish of St. Charles, at a distance extending inland five hundred feet from the present shore line and extending not more than one mile into Lake Pontchartrain; the said levees, embankments, seawalls, jetties, breakwaters, water-basins and other works to be of such character and extent and of such height, width, slope, design and material as said governing authority of such district may deem necessary and proper.

(b). In planning, designing and executing said projects, the governing authority of said Districts in each case shall have jurisdiction, power and authority, within the territorial limits of its District to dedicate to public use and to lay out, construct, embellish and maintain a system of parks, beaches, tracts of land and streets, with the necessary and related buildings, and the usual adjuncts to the kind of development contemplated hereunder; to construct, equip and maintain playgrounds, places of amusement and entertainment, gymnasiums, swimming pools, bathing beaches, aviation fields and other like places.

(c). Such Districts may contract with any agency, public or private, providing public utilities within the Parish of Saint Charles, on such terms as may be agreed upon between said Districts and said respective utilities, for the financing, construction and extension of sewerage, water, drainage, electric, gas and other necessary public utilities in, on and through said development.

(d). Said Districts may acquire any land within the districts by donation, purchase or exchange, and may expropriate any private property within three hundred feet of the present shore line of Lake Pontchartrain situated within the respective Districts, which may be necessary in connection with any project. Said districts may acquire by expropriation only the surface of property, leaving the ownership of any minerals or mineral rights in private landowners, and the prescription of non-use shall not run against said minerals or mineral rights. In the event of expropriation the compensation to be paid shall be the actual cash value of the property before the contemplated improvement was proposed and begun.

With reservation of the mineral rights thereon to the State, all property owned by the State of Louisiana, or the title to which stands in the name of the State, and all property which,

by its nature, situation and location, is not susceptible or private ownership under the present law and Constitution of the state, extending into Lake Pontchartrain to a distance not to exceed one mile from the present shore line, shall be vested in the Public Improvement District which shall be created for the purposes of such reclamation, and when such district shall have been formed and shall undertake the said work of reclamation, the vesting of the said title therein shall be indicated by a certificate to that effect issued by the Register of the State Land Office. However, in all cases the mineral rights on any and all property owned by the State of Louisiana are hereby reserved to the State of Louisiana, and provided, that as to the bed of Lake Pontchartrain, only that portion thereof actually reclaimed as the result of reclamation work by any such district shall be included in this grant, and patent may be issued therefor by the Register of the State Land Office upon approval by the Director of Public Works.

(e). Nothing herein contained shall be construed to deprive the Pontchartrain Levee District and the Lafourche Basin Levee District of any rights or powers that such districts presently have or exert in connection with the present levee systems within the Parish of Saint Charles. Public Improvement Districts may enter into contracts with the said Levee Districts in connection with the doing of any act which each such district is empowered to perform.

(f). The work of reclamation, construction and improvement herein and heretofore authorized and provided for shall be accomplished by letting out contracts therefor from time to time in accordance with law at the time of the letting of said contracts.

(g). To enable the said districts to perform the work herein provided for and to assist in defraying the cost and expenses thereof, the State of Louisiana shall grant to the said districts the title to all lands reclaimed or filled in within any levee embankment, slopes, retaining walls, sea walls, and breakwaters constructed hereunder and in and to all lands lying within the territorial limits of said project, when said land shall have been reclaimed and filled in in each project undertaken by said districts and such title shall be evidenced by a certificate issued by the Register of the State Land Office upon the certificate of completion of each such project by the Board of Commissioners of each respective district, and it is hereby made the mandatory duty of said Register to issue such certificate of title upon receipt of the notice of completion of each respective district as herein provided. However, the mineral rights on any and all of said lands are hereby reserved to the State of Louisiana. Public Improvement Districts undertaking projects contemplated hereunder, and receiving title to property as herein provided, shall have complete jurisdiction, power and authority to sell and lease, or sell or lease, or otherwise dispose of such portion of the lands reclaimed and other property acquired for the purpose of said improvement except the land herein required to be dedicated by it for public use, together with any building, improvements or other work constructed thereon, under such terms and conditions and by such methods as the Board of Commissioners may deem proper; and to establish and impose such servitudes, restrictions, rules and regulations as to such lands sold and leased, or otherwise disposed of, as said board may determine; provided that said lands may be subdivided in lots or otherwise and may be offered for sale or lease or sold or leased as soon as practicable after the adoption of this amendment without awaiting the completion of said projects as a whole; provided, that there shall be reserved and dedicated forever by said board for public parks, parkways, boulevards, playgrounds, yacht harbors and places of amusement and beach purposes, exclusive of roads

and streets, an area or areas, comprising not less than ten (10%) per cent of the total land area of the project; and provided further, that along the entire water frontage of the project there shall be reserved and dedicated forever by said District for public parks, parkways, boulevards, playgrounds, aviation fields and places of amusement and beach purposes, a continuous strip of land averaging at least 300 feet in depth and at no point less than 200 feet in depth; provided that when said Districts shall have been established and located the front line of said development, including the line or location of piers, breakwaters, or other like extensions, and shall have sold or leased, or otherwise disposed of, any land or granted any rights based upon said line, or location, or when any party shall have, for a valuable consideration, acquired rights based on said line or location, then no further reclamation shall be made, or other works constructed, by said Districts beyond said established front line or location in the bed of said water, and the State of Louisiana shall not itself undertake, authorize or permit said Districts or any other governmental agency or person, association, firm or corporation whatsoever, to reclaim the bed of said waters, or any part thereof, or to construct any works thereon; provided, however, that the foregoing restrictions and limitations shall not prevent or preclude the State of Louisiana, or other governmental agency authorized by law, or any person, firm or corporation authorized by law, from building any bridges, or crossings connecting the shores of said waters with any land reclaimed or works constructed in said waters. For the sale and disposal of said property, such Districts shall employ such persons, agents or agencies, as said Districts sound discretion may dictate; and shall pay said agents such compensation as shall have been previously agreed upon; provided, however, that in no case shall such compensation exceed the maximum tariff, or rate in force and established at the time by the New Orleans Real Estate Exchange or its successor and allowed for sales of privately owned property within the Parish of Saint Charles.

(h). In order to carry out the objects and purposes of this Section and to enable said Districts to finance and carry on the work of development, improvement, maintenance and operation herein authorized, or otherwise authorized by law, said Districts are authorized and empowered, and shall have the authority and power, to issue, sell and deliver, from time to time, bonds, notes or certificates of indebtedness, not exceeding Thirty Million Dollars in aggregate principal amounts at one time outstanding, to be signed in its behalf by its duly authorized officers, to be payable in lawful money of the United States of America, to bear such rate of interest not to exceed six (6%) per cent per annum, to be payable at such times and at such place or places and to be issued under all such terms and conditions, not inconsistent herewith, as said Districts may determine; and to secure such bonds, notes and certificates of indebtedness at any time issued, or to be issued and outstanding, but not to exceed the sum of Thirty Million Dollars principal amount outstanding, the said Districts are authorized to mortgage and pledge:

(1) Any and all lands reclaimed or to be reclaimed, or otherwise acquired by said Districts as part of said development, except such part of said land as is required by the provisions hereof to be reserved and dedicated for public parks, parkways, boulevards, playgrounds or places of amusement, or beach purposes, together with all buildings or improvements made or constructed, or to be made or constructed thereon, and all rights, ways, privileges, servitudes or appurtenances, thereunto belonging, or in anywise appertaining, and

(2) Cash, notes, or other evidences of indebtedness received, or to be received, by said Districts in consideration for the sale or sales of any lands, lots, and improvements forming part of said development; and

(3) Any lease or leases and the rents, incomes and other advantages arising out of any lease or leases, made or granted by said Districts in connection with said development; and

(4) Generally any and all rights of said Districts and to any lands, property, incomes, revenues, claims and other choses in action, forming part of and arising out of said development.

Said Districts shall have the power and authority to sign, execute and deliver any act or acts of mortgage and pledge containing all such terms, conditions and stipulations, not inconsistent herewith, as they may deem proper to secure any bonds, notes or other certificates of indebtedness issued, or to be issued by it in pursuance hereof. The said bonds, notes or certificates of indebtedness shall be exempt from all taxation for state, parish and municipal purposes, and savings banks and insurance companies shall be authorized to invest funds in their hands therein and said bonds, notes and certificates of indebtedness may be used for deposit with any officer, board, municipality or other political subdivision of the State of Louisiana, in any case in which any present or future laws deposit of security may be required. Said bonds, notes and certificates of indebtedness shall be deemed to be negotiable instruments and incontestable in the hands of bona fide holders for value; provided, however, nothing herein contained shall be construed as pledging the credit of the State of Louisiana for the payment of said bonds, notes or certificates of indebtedness, nor shall said bonds, notes or certificates of indebtedness be construed as obligations of the State of Louisiana.

(i) The power and authority hereby conferred shall be in addition to any power to issue bonds, or other evidences of indebtedness and to borrow money, now or hereafter conferred by law upon said Districts. Anything herein contained to the contrary notwithstanding, the aggregate principal amount of all bonds, notes and certificates of indebtedness issued hereunder at any time outstanding, together with the total maximum liability, whether or not due, then unpaid, on all contracts for any work and material in connection with the project herein authorized, shall never exceed the sum of Thirty Million Dollars, and any contract made, or any bond, note or certificate of indebtedness issued in violation of this provision shall be null and void.

For a period of sixty (60) days from the date of publication of the proceedings of the Board of Commissioners of any District hereunder, authorizing the issuance of any bonds, notes or certificates of indebtedness, any person in interest shall have the right to contest the legality of such proceedings, the bonds, notes or certificates of indebtedness provided for, for any cause; after which time no one shall have any cause or right of action to contest the regularity, formality or legality of said proceedings or authorization for any cause whatsoever. If the validity of any proceedings or issue authorized or provided for, held under the provisions of this Section, is not raised within sixty (60) days from the date of publication of the proceedings taken in connection therewith, the legality thereof shall be conclusively presumed, and no court shall have authority to inquire into such proceedings.

(j). The provisions hereof are self-executing and the District is authorized and empowered to carry same into effect, and no further legislation shall be required to effect the

same.

(Added by Acts 1960, No. 638, adopted Nov. 8, 1960. Amended by Acts 1965, No. 175, adopted Nov. 8, 1966; Acts 1966, No. 568, adopted Nov. 8, 1966.)

CA 14 39

Repealed by Acts 1997, No. 1095, 3 (See R.S. 33:4699.1).

§39. Repealed by Acts 1997, No. 1095, §3 (See R.S. 33:4699.1).

CA 14 39.1

Calcasieu parish; community center and playground districts; bond issue; secretary-treasurer's performance bond

§39.1. Calcasieu parish; community center and playground districts; bond issue; secretary-treasurer's performance bond

Section 39.1. Acting under the provisions of this Article of the Constitution and Sections 501 to 578, both inclusive, of Title 39 of the Louisiana Revised Statutes of 1950, insofar as applicable thereto, Community Center and Playground Districts organized in the Parish of Calcasieu, State of Louisiana, under the provisions of Act No. 82 of the Legislature of Louisiana for the year 1948[1], may, through their governing authorities, incur debt and issue bonds secured by and payable from annual ad valorem taxation as prescribed under the Constitutional limitations on all of the property situated within the said Districts sufficient in amount for the purpose of purchasing and acquiring lands and purchasing, acquiring, constructing and maintaining public buildings, for the establishment and maintenance of Community Centers, including parks, playgrounds, recreation centers, and libraries, together with the necessary furnishings and equipment therefor, title to which shall be in the public. Said Community Center and Playground Districts are hereby declared to be political subdivisions of the State and shall have and exercise such further powers as has been or may be authorized by the Legislature. The secretary-treasurer of each such Community Center and Playground District shall furnish bond for the faithful performance of his duties according to law in the sum of five thousand dollars.

(Added by Acts 1950, No. 553, adopted Nov. 7, 1950. Amended by Acts 1954, No. 750, adopted Nov. 2, 1954.)

[1]Acts 1948, No. 82, authorized the Police Jury of the Parish of Calcasieu to create within the Parish one or more community center and playground districts composed of territory outside of the corporate limits of the city of Lake Charles.

CA 14 44

Repealed by Acts 1997, No. 1095, 3 (See R.S. 33:4699.1).

§44. Repealed by Acts 1997, No. 1095, §3 (See R.S. 33:4699.1).

CA 14 44.1

Repealed by Acts 1997, No. 1095, 3 (See R.S. 33:4699.1).

§44.1. Repealed by Acts 1997, No. 1095, §3 (See R.S. 33:4699.1).

CA 14 45

Repealed by Acts 1998, 1st Ex.

§45. Repealed by Acts 1998, 1st Ex. Sess., No. 144. §2, eff. July 1, 1998.

CA 14 47

Louisiana Stadium and Exposition District

§47. Louisiana Stadium and Exposition District

Section 47.(A) There is hereby created the Louisiana Stadium and Exposition District, hereinafter simply called the "District", which shall be a body politic and corporate and political subdivision of the State of Louisiana composed of all of the territory in the Parishes of Orleans and Jefferson.

(B) *Repealed by Acts 1976, No. 541, §15.*

(C) The purpose for which the District is created is to plan, finance, construct, develop, maintain and operate facilities to be located within the District to accommodate the holding of sports events, athletic contests and other events of public interest. The District shall constitute an instrumentality of the State of Louisiana, exercising public and essential governmental functions, and the exercise by the District of the powers conferred herein shall be deemed and held to be essential governmental functions of the State of Louisiana. As the exercise of the powers granted hereby will be in all respects for the benefit of the people of the State, for the increase of their commerce and prosperity, the District shall not be required to pay any taxes or assessments upon any property acquired or used by it under the provisions of this amendment, or upon the income therefrom, and any bonds issued hereunder and the income therefrom shall be exempt from taxation by the State of Louisiana and by any parish, municipality or political subdivision of the State. The District shall not be subject in any respect to the authority, control or supervision of any regulatory body of the State or any political subdivision thereof, but its books and records shall be subject to audit annually by the Legislative Auditor, its employees shall be listed on the central listing of State employees, and it shall invest its idle funds in accordance with the investment of idle funds act and it shall be subject to the provisions of the Code of Ethics.

(D) The District shall have the power to sue and be sued in its own name and is hereby authorized and empowered to plan, acquire, finance, own, construct, operate and maintain an enclosed and covered stadium for use as coliseums, sports arenas, sports pavilions, exposition sites, field houses, or other buildings or structures for holding sports events, athletic contests, contests of skill, exhibitions, spectacles and other public meetings, and pertinent indoor and outdoor recreational facilities, recreation centers, playing fields, courts, gymnasiums, club houses, parking facilities and areas, other suitable concessions appertaining thereto, related buildings, and all facilities and properties incidental and necessary to a complex suitable for any or all types of sports and recreation, on, above, and below the ground, appurtenances, incidentals and all types of property therefor, real or personal, or both real and personal, including servitudes and rights-of-way (or any combination thereof); to acquire by expropriation, purchase, lease or otherwise, the land and any other property that may be necessary and appropriate to the execution of the purposes of the District; to enter into contracts for the use of the facilities hereinabove described, or any portion thereof, with any person or corporation, public or private, with the State of Louisiana or any of its various agencies, or with any political subdivision of said State or with any combination thereof, for events or programs or series of events or programs, including but not by way of limitation series of football or other athletic games or events, extending over such term as the District may deem appropriate; and to execute leases to the State, its agencies or subdivisions for a term not exceeding forty (40) years at a fixed rental, or for a term not exceeding ninety-nine years provided such latter leases shall contain a clause or clauses for readjustment of the rentals upon the expiration of a primary term of forty (40) years; to borrow with the approval of the State Bond and Tax Board from any person or corporation using or renting any of the facilities hereinbefore described such sums as shall have been determined by the Board to be necessary to improve any of the aforesaid facilities according to plans and specifications approved by

the Board and to erect and construct such improvements, and enter into an agreement that the aforesaid loan or loans shall be liquidated by deducting from the rentals, payable for the use of the facilities so leased, the percentage thereof to be agreed upon, subject, however, to any covenants or agreements made with the holders of bonds issued under the authority herein set forth; to collect admissions, tolls, rentals and any and all other charges and fees; to borrow funds for the execution of the purposes of the District; to levy and collect hotel occupancy taxes as hereinafter set forth; to mortgage any of the aforesaid facilities constructed or acquired by the District and to mortgage and pledge any lease or leases and the rents, income and other advantages arising out of any lease or leases granted, assigned or subleased by the District; to collect fees, rentals and other charges for the use of the facilities of the District; to incur debt and issue bonds or other obligations for the needs of the District in the manner hereinafter provided.

(E) Any other provisions of the Constitution and laws of the State to the contrary notwithstanding and without compliance with any other constitutional or statutory provisions relative to leasing of public facilities the State of Louisiana or any of its various agencies, or any political subdivision thereof, or any combination of the foregoing shall have the right and authority to lease the aforesaid facilities of the District or any portion thereof and provide for the payment of the consideration therefor through the appropriation of funds or otherwise. The obligations of the lessee or lessees under any such lease shall constitute a charge against the revenues of such lessee or lessees to the extent and in the manner agreed upon by the parties thereto. In the event the State of Louisiana or any of its various agencies or any political subdivision thereof or any combination of the foregoing shall lease all or any portion of the aforesaid facilities of the District, then such entities shall have the right to sublease to any person or corporation, public or private, all or any portion of the facilities so leased upon such terms and conditions as they may determine.

(F) Without reference to any other provisions of this Constitution or of any laws enacted thereunder and as a grant of power in addition to any other authority to issue bonds, the District is authorized, with the approval of the State Bond and Tax Board, to issue negotiable bonds of the District from time to time for any purpose within the authority delegated it and to pledge for the payment of the principal and interest of such negotiable bonds the income and revenue derived or to be derived from the properties and facilities maintained and operated by it, or received by the District from any other sources whatsoever, including but not by way of limitation other moneys which by law or contract may be made available to the District, and to prescribe the conditions and details of such bonds. In addition to the pledge of income and revenues to secure said bonds, the District may further secure their payment by (1) a conventional mortgage upon any or all of the properties constructed or acquired, or to be constructed and acquired by it, and/or (2) the proceeds of taxes authorized to be imposed pursuant to this amendment. Such bonds shall be authorized and issued by a resolution of the Board of Commissioners of the District and shall be of such series, bear such date or dates, mature at such time or times not exceeding forty (40) years from their respective dates, bear interest at such rate or rates not exceeding six percent (6%) per annum, payable semi-annually, be in such denominations, be in such form, either coupon or fully registered without coupons, carry such registration and exchangeability privilege, be payable in such medium of payment and at such place or places, be subject to such terms of redemption not exceeding 105% of the principal amount thereof, and be entitled to such priorities on the income, revenues and taxes of the District as such resolution or resolutions may provide. The bonds shall be signed by the President and Secretary of the Board of Commissioners of the District (one of which signatures may be a facsimile) and coupon bonds shall have attached thereto interest coupons bearing the facsimile signatures of such officers of the District. Any such bonds may be issued and delivered, notwithstanding that one or more of the officers signing such bonds or the officer or officers whose facsimile signature or signatures may be upon the coupons shall have ceased to be such officer or officers at the time such bonds shall actually have been delivered. Said bonds shall be sold for not less than par and accrued interest to the highest bidder at

public sale after advertisement by the District at least once a week for three (3) weeks, with the first publication being not less than twenty-one (21) days prior to the date of sale, in a newspaper of general circulation within the District and in a financial newspaper or journal published in the City of New York or the City of Chicago, reserving to the District the right to reject any and all bids and to re-advertise for bids.

(G) The Board may in any resolution authorizing the issuance of such bonds enter into such covenants with the future holder or holders of the bonds as to the management and operation of facilities, the lease or rental thereof, the imposition and collection of fees and charges for services and facilities furnished by the District, the disposition of such fees and revenues, the issuance of future bonds and the creation of future liens and encumbrances against such facilities and the revenues therefrom, the carrying of insurance on the facilities, the keeping of books and records, and other pertinent matters, as may be deemed proper by the Board to assure the marketability of the bonds, provided such covenants are not inconsistent with the provisions of this amendment. Any holder of the bonds or of any of the coupons thereto attached may by appropriate legal action compel performance of all duties required of the Board and officials of the District by this amendment. If any bond issued hereunder is permitted to go into default as to principal or interest, any court of competent jurisdiction may pursuant to the application of the holder of the bond, appoint a receiver for the facilities of the District, which receiver shall be under the duty of operating the facilities and collecting and distributing the revenues thereof pledged to the payment of the bonds, pursuant to the provisions and requirements of this amendment and the resolution authorizing the bonds. As hereinbefore provided such bonds may in the discretion of the Board be additionally secured by conventional mortgage on all or any part of the properties or facilities acquired, constructed, extended or improved with the proceeds thereof, and the Board shall have full discretion to make such provisions as it may see fit for the making and enforcement of such mortgage and the provisions to be therein contained.

(H) If more than one series of bonds is issued hereunder payable from the revenues of any facility, priority of lien on such revenues shall depend on the time of delivery of the bonds, each series enjoying a lien prior and superior to that enjoyed by any series of bonds subsequently delivered, except that where provision is made in the proceedings authorizing any issue or series of bonds for the issuance of additional bonds in the future on a parity therewith pursuant to procedure or restrictions provided in such proceedings, additional bonds may be issued in the future on a parity with such issue or series in the manner so provided in such proceedings. As to any issue or series of bonds which may be authorized as a unit but delivered from time to time in blocks, the Board may in the proceedings authorizing the issuance of the bonds provide that all of the bonds of the series or issue shall be coequal as to lien regardless of the time of delivery.

(I) The Board may issue bonds under this amendment payable from the revenues to be derived from two or more facilities owned and operated by the District (whether or not such facilities are related or used in conjunction) for the purpose of constructing, acquiring, extending or improving any one or more of the facilities, which bonds may be additionally secured by a conventional mortgage upon such facilities and the taxes authorized to be imposed hereunder.

(J) The Board may authorize the issuance of refunding bonds of the District for the purpose of refunding outstanding bonds issued pursuant to this amendment. Such refunding bonds may either be sold and the proceeds applied to or deposited in escrow for the retirement of the outstanding bonds, or may be delivered in exchange for the outstanding bonds. The refunding bonds shall be authorized in all respects as original bonds are herein required to be authorized, and the Board in authorizing the refunding bonds shall provide for the security of the bonds, the sources from which the bonds are to be paid and for the rights of the holders thereof in all respects as herein provided for other bonds issued under authority of this amendment. The Board may also provide that the refunding bonds shall

have the same priority of lien on the revenues pledged for their payment as was enjoyed by the bonds refunded. No bonds may be refunded hereunder unless they either mature or are callable for redemption under their terms within ten (10) years from the date of issuance of the refunding bonds, or unless the holders thereof voluntarily surrender them for exchange or payment.

(K) It may be provided in the resolution authorizing any bonds hereunder that such bonds shall recite that they are issued under authority of this amendment. Such recital shall conclusively import full compliance with all of the provisions of this amendment and all bonds issued containing such recital shall be incontestable for any cause whatsoever after their delivery for value after thirty days from the date of publication of the resolution authorizing their issuance.

(L) No proceedings in respect to the issuance of any such bonds shall be necessary except such as are contemplated by this amendment. For a period of thirty (30) days from the date of publication of the resolution authorizing the issuance of bonds hereunder, any person or persons in interest shall have the right to contest the legality of the resolution and the legality of the bond issue for any cause, after which time no one shall have any cause or right of action to contest the legality of said resolution or of the bonds authorized thereby for any cause whatsoever. If no suit, action or proceedings are begun contesting the validity of the bonds within the thirty (30) days herein prescribed, the authority to issue the bonds and to provide for the payment thereof, the legality thereof and of all of the provisions of the resolution authorizing the issuance of the bonds shall be conclusively presumed, and no court shall have authority to inquire into such matters. Such bonds shall have all the qualities of negotiable instruments under the law merchant and the Negotiable Instruments Law of the State of Louisiana.

(M) In order to provide funds for the purposes of the District, the District is authorized and empowered to levy and collect a tax upon the occupancy of hotel rooms located within the District. Said tax shall be in the amount of four and one-half percent of the rent or fee charged for such occupancy for a period of thirty-six months from the date of the imposition of the tax and thereafter shall be in the amount of four percent of said rent or fee. The word "hotel" in this amendment shall mean and include any establishment engaged in the business of furnishing or providing rooms intended or designed for dwelling, lodging or sleeping purposes to transient guests, where such establishment consists of ten or more guest rooms. "Hotel" does not include any hospital, convalescent or nursing home or sanitarium, or any hotel-like facility operated by or in connection with a hospital or medical clinic providing rooms exclusively for patients and their families. The tax shall be paid by the person who exercises or is entitled to occupancy of the hotel room, and shall be paid at the time the rent or fee for occupancy is paid. "Person" as used herein shall have the same definition as that contained in R.S. 47:301(8). The tax shall not apply to the rent for hotel rooms rented to the same occupant for a period of thirty or more consecutive calendar days, nor shall it apply to hotel rooms rented for less than three dollars a day.

The District shall impose the tax by ordinance adopted by its Board of Commissioners, who shall have the right to provide in the ordinance necessary and appropriate rules and regulations for the imposition, collection and enforcement of the tax. The District shall also have the authority to provide by contract with the fiscal agents of Orleans and Jefferson Parish for the collection of the tax.

In the event the occupancy tax is imposed as herein provided, the two percent state sales and use tax on hotel fees and rentals covered by the occupancy tax, as well as all other local sales or use taxes levied within the District prior to the effective date of this amendment by any political subdivision of the State on such hotel fees and rentals, except the sales and use taxes levied by the city of New Orleans, shall be abated during the period of the levy of the occupancy tax, it being the intention of this amendment to exempt such rentals and fees from the said sales and use taxes in consideration of the economic and financial benefits accruing to the state, the City of New Orleans and the Parish of Jefferson from the construction and operation of the District's facilities. Provided,

however, that the Orleans Parish School Board may levy or continue to levy on such hotel fees and rentals its one percent sales and use tax authorized at a special election held on May 3, 1966; the Jefferson Parish School Board may levy or continue to levy on such hotel fees and rentals its one-half of one percent sales and use tax authorized at a special election held on May 3, 1966; and the Jefferson Parish School Board shall continue to receive and the governing authority of the Parish of Jefferson shall continue to levy for the benefit of said School Board on such hotel fees and rentals fifty percent of the one percent sales and use tax authorized at a special election held on October 5, 1954, it being the further intention of this amendment that the present rate of the sales and use taxes being levied by or accruing to such school boards under existing law shall not be abated or diminished.

The aforesaid ordinance imposing the hotel occupancy tax may not be adopted by the Board of Commissioners of the District unless prior thereto the City of New Orleans and the Parish of Jefferson each adopt, in the manner provided for the adoption of ordinances in their respective charters, ordinances consenting to the exemption above provided from their own respective sales and use taxes of hotel room rentals and fees subject to the hotel occupancy tax herein authorized.

Upon the payment in full in principal and interest of all bonds issued by the District under the terms of the amendment and secured by all or any portion of the hotel occupancy tax, or upon the irrevocable deposit of sufficient funds for the payment and redemption of all such bonds in principal, interest and redemption premiums, if any, to their respective maturity or call dates, the levy of the hotel occupancy tax shall be discontinued and terminated. If no bonds have been issued by the District secured by all or part of the proceeds of the hotel occupancy tax, then the tax may be terminated at any time by resolution of the Board and in the absence of a resolution terminating it, it shall terminate automatically five years from the date of the adoption of the resolution imposing the tax. In any case, termination of the occupancy tax shall automatically terminate the exemption herein provided of hotel room rentals and fees from the sales and use taxes of the State of Louisiana, the City of New Orleans and the Parish of Jefferson.

(N) The District may pledge all or any part of the proceeds of the aforesaid occupancy tax to the payment of bonds authorized pursuant to this amendment under such terms and conditions consistent with the provisions of this amendment as its Board of Commissioners may prescribe and as are contained in the resolution or resolutions providing for the issuance of such bonds.

(O) When any bonds shall have been issued hereunder secured by all or any portion of the occupancy tax, neither the Legislature, the District, nor any other authority may discontinue or decrease the tax or permit to be discontinued or decreased the tax in anticipation of the collection of which such bonds have been issued, or in any way make any change in the allocation and dedication of the proceeds of such tax which would diminish the amount of tax revenues to be received by the District until all of such bonds shall have been retired as to principal and interest or irrevocable provision otherwise made for their complete redemption and payment in principal and interest and redemption premium, if any.

(P)(1) Any revenues of the district derived from any source whatsoever, including the hotel occupancy tax, remaining at the end of each fiscal year after the payment and satisfaction of all obligations of the district under the terms of any resolution or resolutions authorizing the issuance of bonds hereunder and thereafter all expenses of operation and maintenance of both the district and the properties which expenses shall include two million three hundred thousand dollars annually to the Renewal and Replacement Fund and five hundred thousand dollars annually to the Greater New Orleans Sports Foundation, as approved by the Joint Legislative Committee on the Budget, shall be considered as surplus. The surplus shall be distributed in the following order:

(a) An amount equal to one and thirteen one-hundredths percent annually of the hotel occupancy tax to Jefferson Parish for tourism promotion.

(b) Two million two hundred thousand dollars annually to the city of New Orleans to be used solely and exclusively by the New Orleans Recreation Department (NORD), or its successor.

(c) Two hundred fifty thousand dollars annually to Xavier University.

(d) Two hundred fifty thousand dollars annually to Southern University-New Orleans to be used solely and exclusively for the Small Business Center; however, any such monies received shall not supplement, replace, or displace any monies received or otherwise made available from the state by way of appropriation or otherwise.

(e) Five hundred thousand dollars annually for the Westbank Sports and Civic Center in Jefferson Parish.

(f) Two hundred fifty thousand dollars to the University of New Orleans to be used solely to elevate the school of Hotel, Restaurant, and Tourism Administration into a Louisiana Center for Excellence in Hospitality Education, and to provide for the operation and maintenance thereof; however, any such monies received by the University of New Orleans shall not supplant, replace, or displace any monies received or otherwise made available from the state by way of appropriation or otherwise.

(g) Three hundred fifty thousand dollars annually to the New Orleans Visitors and Information Center.

(h) In the event the amount available is not sufficient to fully fund the distributions in Subsubparagraphs (a) through (g), the amount available shall be distributed on a pro rata basis.

(2) The remaining surplus shall accrue to the Economic Development Fund of the Louisiana Stadium and Exposition District under the following conditions and restrictions. Monies accruing to the Economic Development Fund from the surplus shall be used for the purposes of developing and engaging in marketing, promotional, and economic development activities on behalf of the district, the development of special projects benefitting the district and the state, and facility planning and expansion programs. The promotional activities shall include but are not limited to marketing, advertising in any medium, hosting, subsidizing, providing seed money or guarantees, or otherwise financially assisting potential and actual events in facilities of the district and elsewhere, including but not limited to World Cup Soccer, National Football League Super Bowl, national political conventions, and the National Collegiate Athletic Association Final Four, for the purpose of promoting the facilities of the district.

(3) The promotional and economic development activities engaged in and the control and management of the funds accruing from the surplus shall be vested in the Louisiana Stadium and Exposition District.

(Q) The District is further authorized to receive by gift, grant, donation or otherwise any sum of money, aid or assistance from private sources, from the United States, the State of Louisiana, or any political subdivision thereof, and unless otherwise provided by the terms of such gift, grant, donation, in its discretion, to pledge all or any part of such moneys for the further securing of the payment of the principal and interest of its bonds.

(R) Nothing herein contained shall be construed to deprive either the City of New Orleans or the Parish of Jefferson of its authority to conduct, under its own auspices, programs of recreation for its residents and to acquire, own and operate such facilities as are determined by their respective governing authorities, to be necessary to the continuation and improvement of recreation programs now or hereafter conducted under existing constitutional and statutory authority delegated them.

(S) No bond issued under this amendment shall be secured by the faith and credit of the State.

(T) This amendment is to be regarded as self-sufficient and self-executing without any supplementary action on the part of the Legislature or any other State authority. The Legislature is nevertheless authorized to more fully define the rights and obligations of the District or otherwise legislate in any manner and to any extent with regard to the Louisiana Stadium and Exposition District, its governing body and its powers, duties and functions, provided, however, no such changes or legislation shall impair the obligation of any contract or contracts theretofore entered into by the District.

Added by Acts 1966, No. 556, adopted Nov. 8, 1966; Acts 1991, No. 624, §1, eff. July 17, 1991; Acts 1992, No. 1099, §1, eff. July 1, 1992; Acts 1993, No. 640, §4, eff. June 15, 1993; Acts 1995, No. 1191, §1, eff. June 29, 1995; Acts 2009, No. 438, §13; Acts 2019, No. 170, §1, eff. July 1, 2019.

CA 16 6

Repealed by Acts 2011, No. 248, §1

ARTICLE XVI. LEVEES

§6. Repealed by Acts 2011, No. 248, §1.

CA 19 19

Immovable property; recordation of mortgages, privileges, etc.; prescription of taxes and licenses; privileges on movable property

ARTICLE XIX. GENERAL PROVISIONS

§19. Immovable property; recordation of mortgages, privileges, etc.; prescription of taxes and licenses; privileges on movable property

Section 19. No mortgage or privilege on immovable property, or debt for which preference may be granted by law, shall affect third persons unless recorded or registered in the parish where the property is situated, in the manner and within the time prescribed by law, except privileges for expenses of last illness, privileges arising upon the death of the owner of the property affected, and privileges for taxes, State, parish and municipal; provided such tax liens, mortgages and privileges shall lapse in three years from the 31st day of December in the year in which the taxes are due; and whether such liens are now or hereafter recorded; and provided, further, that all taxes and licenses, other than real property taxes, shall prescribe in three years from the 31st day of December in the year in which such taxes or licenses are due.

Privileges on movable property shall exist without registration of same, except in such cases as may be prescribed by law.

(a). No state, district, parish or other tax, license, fee or assessment of any kind or nature, with all interest charges and penalties appertaining thereto, imposed, due or collectible, upon any property, minerals or the severance thereof, or due or payable by any person, firm or corporation upon any business operation or activity within the Tidelands area in dispute between the state and the United States and within the state's historic gulfward boundary three leagues from coast, as established and defined by the Act of Congress of April 8, 1812, which admitted this state into the Union, and as re-defined in Act 33 of the 1954 Legislature of Louisiana, shall prescribe until three years after the 31st day of December in the year in which the controversy existing between the United States and the State of Louisiana over its said state gulfward boundary shall have been finally resolved and settled in accordance with law; provided, however, no interest charges nor penalties shall be assessed or collected on any such tax, license, fee or assessment if such tax, license, fee or assessment is paid within one year after the 31st day of December in the year in which such controversy is finally resolved and settled.

(Amended by Acts 1938, No. 35, adopted Nov. 8, 1938; Acts 1962, No. 548, adopted Nov. 6, 1962.)

CA 19 20

Repealed by Acts 1984, No. 954, 2.

§20. Repealed by Acts 1984, No. 954, §2.